

MEMORANDUM

FROM: **THE FREEDOM FRONT**

TO: **THE EXECUTIVE DIRECTOR, CONSTITUTIONAL
COMMITTEE**

THE PROCESS OF WRITING THE NEW CONSTITUTION

1. Referring to your request that the different parties give their ideas about the process of drawing up the new constitution. Herewith the contribution of this party. We understand the "process" to be the best method to reach the correct solution.

2. TIME ALLOCATION

2.1 The new constitution must be written according to the constitution of the Republic by April 1996. It is suggested that the target date for planning purposes be 28 February 1996. This allows for a reserve of two months to complete or to amend the Constitution. The latter option may be necessary because the provincial system and local government will be implemented so late in the two year period that no meaningful lessons would be learnt from the experience.

2.2 It is suggested that the time allocation for this period be as follows:

2.2.1 AS FROM THIS DATE TO 30 JUNE 1995

Research and study by the Constitutional Assembly and all the committees in terms of:

- a) The unique demands the South African Situation poses to the Constitution. It should include the following:
 - i) Historical development of the political process in South Africa.
 - ii) Economic development potential - growth.
 - iii) Population composition and cultural differences.
 - iv) Traditional customs and governmental systems.
 - v) Political/ideological factors and cultures.

- vi) Conflict potential and the prevention of conflict.
- vii) Regional influences on the Constitution of South Africa.
- viii) Political aims and endeavours of the different political parties.
- b) Comparative case studies of successful Constitutions to apply directly or after amendments to satisfy the unique South African demands of the Constitution.
- c) Constitutional guidelines that is suitable in the South African context.

2.2.2 **JULY 1995**

A publication summarising the findings of the above studies should be disclosed during this period. It should form the basis of the formulation of the general guidelines for the new constitution and should enjoy agreement in the general consensus.

2.2.3 **AUGUST 1995 TO FEBRUARY 1996**

The formulation and writing of the constitution should take place during this period. This party proposes that the writing be presented to a technical committee and be monitored by the Constitutional Assembly and the different committees as required.

3. **PUBLIC INVOLVEMENT IN THE WRITING OF THE CONSTITUTION**

Contributions from outside the Constitutional Assembly will be very valuable in the first phase of the process. The study in terms of the seven (or more) topics mentioned above to analyse the unique demands of the South African situation to the constitutional writing, can come from contributions from within the Constitutional Assembly or from outside as follows:

- 3.1 By inviting recognised experts to deliver papers and make presentations to the different committees for discussion.
- 3.2 By inviting organisations, communities or individuals to make presentations about the specific topics.
- 3.3 By making the July 1995 document concerning the findings public for analysis before the Constitutional Assembly discuss, finalise and accept the document.

4. Public involvement can also be obtained in the "formulation phase" of the Constitution by publishing the formulation as it progresses for comments.
5. This party present the above as a broad plan which can be amended accordingly.

GENERAL CONSTAND VILJOEN MP
Leader: Freedom Front

9 September 1994

BLOCK 2 (a) ONE SOVEREIGN STATE
 (b) SUPREMACY OF THE CONSTITUTION

The Freedom Front makes the following submissions:

(a) ONE SOVEREIGN STATE

- (i) The concept of 'one sovereign state' in Constitutional Principle I does not presuppose that the form of state should necessarily be unitary.

Constitutional Principle I was based on the preamble to the Declaration of Intent adopted Codesa 1 in 1992, which referred to a future, 'undivided' South Africa and to the future South Africa as a 'united' state. Inkatha's initial reluctance to sign the Declaration of Intent, because it feared that the Declaration could be interpreted as prescribing a unitary state as opposed to a federal state, disappeared when it was formally made clear that 'any proposal consistent with democracy' (including federalism) could be freely submitted to the Convention.

The understanding referred to above is as till, in February 1995, one of the cornerstones of the constitutional process. The report on Block I from Theme Committee I to the Constitutional Assembly was based on the premise that the concept 'South Africa shall be a sovereign independent and undivided state' (0 under 'Non-contentious Points') 'shall not preclude the state being structured along federal lines nor shall it preclude any party from arguing in favour of federalism'.

The concept 'one sovereign state' in Constitutional Principle 1 should be read in the light of all the Constitutional Principles as a whole, some of which prescribe limitations on the central Authority in favour of provincial autonomy.

Examples of the above-mentioned limitations occur inter alia in the following:

Constitutional Principle XVIII((2) (powers and functions of provinces not to be substantially less than or substantially inferior to those provided for in the transitional Constitution);

Constitutional Principle XVIII(4) (special procedures, special majorities, etc., required for amendments to the Constitution altering the powers, boundaries, functions or institutions of provinces);

Constitutional Principle XXI (criteria to be applied in the allocation of powers to the national government and the provincial governments, which indicate that the national government should have the ultimate power only in specified fields (wide though they are) and that the level at which certain decisions can be taken most effectively should be the level empowered by the Constitution to do so);

Constitutional Principle XXII (national government not to exercise its powers (exclusive or concurrent) so as to encroach upon the geographical, functional or institutional integrity of the provinces);

Constitutional Principle XXXIV (contemplated constitutional provision for a notion of the right to self-determination by certain communities in certain circumstances).

The Constitutional Assembly is bound by all the Constitutional Principles. It cannot interpret the phrase "one sovereign state" in Constitutional Principle 1 in a vacuum, but should do so in the context (inter alia) of Constitutional Principle XXXIV, which envisages various methods of giving effect to the concept of self-determination, including the creation of appropriate territorial entity within the Republic. It should be borne in mind that Constitutional Principle XXXIV was superimposed on all the other Constitutional Principles at a special session of Parliament aimed at an all-inclusive settlement representing the major parties participating in South Africa's first democratic general election. Constitutional Principle XXXIV does not detract from Constitutional Principle 1, but adds a rider to it.

The aim of the submission above is not to expound fully the Freedom Front's submissions in respect of Constitutional Principle XXXIV, but merely to place the phrase 'one sovereign state' in Constitutional Principle I in its proper perspective.

(b) SUPREMACY OF THE CONSTITUTION

The concept of a constitutional state means that no organ of state (not even Parliament itself) is above the constitution: sovereign power in such a state vests in the constitution. However, as Parliament has the power to alter the Constitution (in

accordance with its provisions) it is imperative that appropriate checks and balances be introduced in the Constitution. In this regard Constitutional Principle XV : 'Amendments to the Constitution shall require special procedures involving special majorities'. The very purpose of this requirement is to preclude the possibility of the 'tyranny of the majority' in Parliament. In some states this possibility is reduced by the requirement that constitutional change requires approval of certain majorities of voters in referenda.

Supremacy of the constitution in the present context refers not only to the constitutional state mentioned above, but also to the following : that the Constitution is the highest law in the land, and all other law (statutory and common law) is subject to it, i.e. the latter would be void or invalid to the extent of any conflict between the two; and domestic international law, in so far as it may be part of South African law, is likewise subject to the same limitation.

The Freedom Front wishes to point out that this submission is a general statement of principle, and that the appropriate checks and balances referred to above should be spelled out in subsequent reports of relevant Theme Committees (e.g. Theme Committee I and/or 2 and/or 3).

FREEDOM FRONT

THEME COMMITTEE 4 (FUNDAMENTAL RIGHTS)

SUBMISSIONS ON CHILDREN'S RIGHTS

1. Content of children's rights

- 1.1 Children's rights are briefly set out in section 30 of the transitional Constitution. South Africa recently ratified the Convention on the Rights of the Child, adopted by the General Assembly of the United Nations on 20 November 1989.

In view of the fact that the above-mentioned Convention contains extensive provisions relating to children, it is not possible to give any description of the content of children's rights.

The Freedom Front attaches great importance to the family as 'the natural and fundamental group unit of society' as acknowledged by article 10 of the International Covenant on Economic, Social and Cultural Rights 1966 as well as article 23 of the International Covenant on Civil and Political Rights 1966. The Freedom Front accordingly agrees generally with the provisions of the Convention of 1989, which is certain to have important effects on the quality of life of children in the country. We support in almost all respects the contents of the four main groups of rights dealt with in this Convention, viz. survival rights, development rights, protection rights and participation rights.

We are of the opinion that the provisions of section 30 of the transitional Constitution should be expanded to make provision for a slightly more comprehensive treatment of children's rights in the new Constitution. In this regard we wish to draw attention to a few specific provisions of the 1989 Convention, as well as some provisions of other international instruments (see the note under (iii)(b) below), which provisions should, in our view, be incorporated in the chapter on fundamental rights in the new Constitution.

The successor to the Present section 30 of the transitional Constitution should, in our view, contain provisions dealing with the in the Convention of 1989:

- (i) the rights and responsibilities of parents and 'the extended family or community' (stress supplied to provide guidance for the child which is appropriate to his or her evolving capacities (article 5 of the Convention);
- (ii) the child's right to freedom of thought, conscience and religion, 'subject to appropriate parental guidance' (article 14 of the Convention);
- (iii) the aims of education as set out in article 29 of the Convention, including, in particular,

(a) the fostering of respect for the child's parents, his or her own cultural identity, language and values, and for the cultural values of others;

(b) the liberty of individuals and bodies to establish and direct educational institutions, subject to certain principles mentioned in article 29 and minimum standards laid down by the state.

NOTE: The Constitution should also provide for the right of parents to ensure education and teaching 'in conformity with their own religious and philosophical convictions' (article 2 of the First Protocol to the European Convention for the Protection of Human Rights and Fundamental Freedoms 1950).

(iv) the right of children of minority communities and indigenous populations to enjoy their own culture and to practise their own religion and language (article 30 of the Convention of 1989);

(v) the consideration that children need special safeguards and care, including appropriate legal protection, before as well as after birth (preamble of the Convention of 1989).

1.2 Controversial issues

Juvenile Justice and detention of children

The Freedom Front is of the opinion that, in the context of the administration of juvenile justice, the provisions of section 30(2) of the transitional Constitution (children in detention) are too cryptic. In the new Constitution the successor to section 30 should be an expanded version of section 30 (2), making provision for greater safeguards for children in detention, e.g. measures to promote 'the constructive role in society' (article 40.1 of the Convention of 1989) and express provision for 'alternatives for institutional care' (article 40.4 of the Convention of 1989). Moreover, we propose that the Constitution should also contain the following provisions: 'Accused juvenile persons shall be separated from adults and brought as speedily as possible for adjudication' (article 10(2)(b) of the International Covenant on Civil and Political Rights) and 'Juvenile offenders shall be segregated from adults' (portion of article 10(3) of the same Convention).

Child labour

In our view the provisions of section 30 (2) the transitional Constitution are inadequate to deal effectively with the regulation of child labour. We propose that it should be expanded to provide inter alia for a minimum age or minimum ages for admission to employment (see article 32.2(a) of the Convention) and to comply in other respects with the wording of article 32.1 of the Convention. In this context we wish to point out that the International Covenant on Economic, Social and Cultural Rights 1966 in article 10.3 provides: 'States should also set

limits below which the paid employment of child labour should be prohibited and punishable by law' (stress supplied).

Social security

Article 26 of the Convention of 1989 makes provision for children to have the right to benefit from social security, including social insurance.

The Freedom Front adheres to the view that, laudable as it may be in principle, statutory provision for a right to social security (including social insurance) will prove to be an empty gesture, in so far as the country does not have the resources to implement the principle. Such a right would, accordingly, not be justiciable, i.e. effectively enforceable by courts. In this connection it should be noted that the Constitution and all fundamental rights must be enforced by the courts (Constitutional Principle VII). The Freedom Front cannot support this so-called 'right to social security'.

2. Application of the right

2.1 Nature of the duty imposed on the state

The nature of the duty imposed on the state is to take such legislative and administrative steps in terms of the principles set out in the international instruments and the proposed provisions of the new Constitution as are at all times in the best interests of children.

2.2 Application of the right to common law and statutory law

In view of advanced contemporary concepts relating to the duties of society towards children this collection of rights will have a statutory basis. Virtually all common law and statutory law rules will be superseded by statutory law.

2.3 Should these rights impose a constitutional duty on actors other than the state?

These rights naturally impose constitutional duties not only on the state but, by their nature, also on parents, the 'extended family' (see 1.1 (i) above), schools, churches, penal institutions, as well as related social institutions.

2.4 Who should bear these rights?

All children within the country should be bearers of these rights, with (possibly) some exceptions in the case of children of aliens unlawfully in the country. Juristic persons created for the benefit of children should also be empowered by law to act in the best interests of children.

2.5 Should these rights be capable of limitation by the legislature?

At this stage it seems that these rights should be capable of limitation by the legislature only in accordance with the general limitation clause (at present section 33 of the transitional Constitution) and in the case of a state of emergency (see section 34 of the transitional Constitution).

28 January 1995

FREEDOM FRONT: SUBMISSION TO THEME COMMITTEE 2
BLOCK 1 - SEPERATION OF POWERS

INTRODUCTION

1. The constitution is the skeleton or essential framework of orderly government and the fundamental concept of democracy, ie the concept of restraints upon government is the main underlying principle of orderly government. What is important in this respect is the functional built-in systems of control, which is not there for the sake of academic correctness but to accommodate the hopes, fears, aims, prejudices, fundamental drive and conflicts of the people involved in the state - both individuals and groups. The constitutional built-in mechanisms is there to forgive them existential security, which can facilitate happiness and make people content.

2. The traditional separation of powers, which goes back a long way, between legislative, executive and judicial powers, is perhaps the main built-in mechanism designed to place certain restraints on the use of power in government. The purpose is to avoid the accumulation of all governmental power in a single individual or institution.

3. It was particularly Montesquieu in the 18th century that articulated this constitutional device to ensure civil liberty. The concentration of and the monopoly over power in a few circumstances not conducive to the functioning of a true democracy. Hence the strict separation of powers.

Montesquieu pointed out that it is the separation of powers that best ensure that the nature of government remain that of a servant and not of a master over the people.

4. The Freedom Front, with its main emphasis on Freedom under all circumstances will insist on this principle of separation of powers being honoured in the writing of the constitution in accordance with Constitutional Principle VI, which states:

"There shall be a separation of powers between the legislature, executive and judiciary, with appropriate checks and balances to ensure accountability, responsiveness and openness. "

5. From the point of view of its constituency and their precarious position within the political changes in the country, the Freedom Front find even more reason now to support this basic principle of democratic government as the constitution of South Africa will be decisive for the establishment of a volkstaat and is thus seen by our supporters as also securing their existential security within South Africa.

6. This principle must also be employed at all levels of government as far as it maybe applicable.

THE LEGISLATURE

7. The legislative authority of the Republic shall, subject to this constitution, vest in Parliament, which shall have the power to make laws for the Republic in accordance with the Constitution." (1 993 Constitution, Section 37).

8. "Parliament consists of the National Assembly and the Senate." (1993 Constitution, Section 36).

9. The National Assembly. The National Assembly or Lower House, should represent the electorate on the principle of democratic elections based on the equality of all voters on an individual basis. Representation can be arranged through the delimitation of constituencies and the nomination of candidates for the election process, through proportional representation or through a combination of both. The duration of office should be five years.

10. The Senate. (See Appendix A for "The Role of the Senate in South Africa".) The Senate or Upper House, must reflect the true soul and character of peoples of South Africa. It is this House that should distinguish South Africa from any other democracy in the world. The Senate should therefore have the following Functions:

10.1 The protection of provincial interests. It should also ensure that centralist monopolistic behaviour and bureaucratic red tape do not frustrate the efficient functioning of provincial and local government.

10.2 Nation building and the protection and development of the different languages and cultures of South Africa.

- 10.3 The protection of minorities and minority rights within the framework of the constitution.
- 10.4 To seek consensus through dialogue without violating the democratic process.
- 10.5 The protection of the Constitution. Thus the Senate must have the power to:
 - a. Review, revise or even veto legislation related to the functions of the Senate. There should however be a deadlock breaking mechanism.
 - b. To initiate judicial review of legislation.
- 10.6 To seek consensus through dialogue without violating the democratic process.

The Upper Chamber is of such importance that the Freedom Front proposes that a workshop be held as soon as possible to determine the possible roles and functions of the Senate in South Africa.

THE EXECUTIVE

1 1. The Freedom Front proposes that Sections 75 and 76 of the 1993 Constitution should be maintained. Thus:

- 11.1 The Head of State shall be the President. Because of the workload involved, the separation of the offices of the Head of State and Head of Government should seriously be considered.
- 11.2 The President shall appoint the Cabinet, supervise the functioning of the Cabinet and consult with the Cabinet on important issues.

12. The President must be elected by parliament and could be a member of the Nasional Assembly or the Senate.

13. Due to the workload, the President must be assisted by a Deputy President or a Prime Minister.

14. The executive must be accountable to both the Head of Government and Parliament.

THE JUDICIAL AUTHORITY

15. The Judiciary must be independent, impartial and subject only to the constitution and the law.

16. There must be an independent Constitutional Court that has the power to nullify an Act of Parliament if the act is in conflict with the Constitution.

(Senator P.H.Groenewald) maj-genl Freedom Front.

THE ROLE OF THE SENATE IN SOUTH AFRICA

INTRODUCTION

The composition of Upper Chambers such as the Senate in the USA and the House of Lords in the UK differs. They can be constituted through election, nomination or qualification. The Upper House is usually a smaller chamber and is used in the overall system of democratic government as a mechanism of control and moderation for the sake of stability and peace.

Upper Chambers have in recent times, drastically declined in stature and usage in Western Democracies. Relatively weak institutions, such as the House of Lords in the UK, the Canadian Senate or the French Senate still play an important role in polishing and clarifying legislation. But they have become distinctly secondary in nature and stature in that they have become chambers of reflection, revisionary debate, protest and delay. Many of them have become the dumping grounds of failed politicians or even worse; political Siberias. The British House of Lords is a relic of the insistence of feudal barons that they should advise and in a way control the monarch whose power constituted a threat to their own domains.

But society has changed. Class orientation is diminished. The need for effective government with as little frustration as possible, is overriding and a second chamber which is little more than a duplication of the first chamber, without a "distinctly defined" nature and task, has become an irritation in majoritarian democracy. It can then be seen as an unnecessary expensive luxury and irrelevant to the real political process. Many of the existing second chambers are also not clearly democratic in its composition and purpose.

THE FREEDOM FRONT PROPOSAL

Serious consideration should be given to the second chamber in the South African parliament to ensure that its nature is representative of South African society and of that which is good and noble in our people. Its role within the overall political process must be defined in such a way that it becomes a cost effective goal orientated institution which will command respect and earn dignity in fulfilling a crucial role in government. It should not frustrate democracy but play an indispensable role in facilitating not only effective and stable government but also the building of culture and common purpose in Southern Africa. Constitutionally, the South African Senate should give the world something truly South African.

The Freedom Front thus proposes that:

- 1 The Senate should, without increasing the number of Senators, be elected as follows:
 - 1.1 Equal representation from the provinces. (60% of its members).
 - 1.2 The true pluralistic nature of South African society must be represented. Thus the Traditional Leaders and any community seeking self-determination should each elect a fixed number of representatives to the Senate.
 - 1.3 The larger and nationally organised corporate entities in South African society, which in their constitutions honours the constitutional demands and criteria, should also elect a fixed number of representatives. Examples of such institutions are:

- a. Organised labour,
Organised business,
 - c. Organised agriculture,
2. The Senate should have the following Functions:
- 2.1 The protection of provincial interests. It must ensure that centralist monopolistic behaviour and bureaucratic red tape do not frustrate the efficient functioning of provincial and local government.
 - 2.2 Nation building and the protection and development of different languages and cultures of South Africa.
 - 2.3 The protection of the Constitution. Thus the Senate must have the power to:
 - a. Revise or even veto legislation related to the functions of the Senate. There should however be a deadlock breaking mechanism.
 - b. To initiate judicial review of legislation.
 - 2.4 To seek consensus through dialogue without violating the democratic process.
 - 2.5 The protection of minorities and minority rights within the democratic system.

WORKSHOP TO DETERMINE THE ROLE AND FUNCTIONS OF THE SENATE

The Upper Chamber is of such importance that the Freedom Front proposes that a workshop be held as soon as possible to determine the possible roles and functions of the Senate in South Africa.

Freedom Front.
28 January 1995.

PROPOSAL OF THE FREEDOM FRONT IN RESPECT OF LOCAL GOVERNMENT, STRESSING COMMUNITY-ORIENTATED FUNCTIONS

Mission:

'The Freedom Front is, in the first place, irrevocably committed to obtain the freedom of our compatriots in a Volkstaat under our own government, and, secondly, to the protection and extension of the rights and interests of those of our compatriots who are outside the Volkstaat'.

Our compatriots, the Afrikaner people, have through their economic efforts and other activities established themselves throughout South Africa. They are consequently today present in bigger or smaller concentrations in all nine provinces of South Africa. For that reason the Freedom Front realises that even when we succeed in establishing a Volkstaat, it will not be possible for all our compatriots to reside inside that Volkstaat.

The above-mentioned fact will not affect the ultimate choice of where the Volkstaat will be situated. Some of our compatriots will always be outside the boundaries of the Volkstaat, wherever it may be situated. Moreover, as a result of the circumstances of their employment and present commitments, it will not be possible for many of our people to move voluntarily to the Volkstaat in the near future.

The candid realisation of the above-mentioned fact resulted in the Freedom Front devoting the second but equally important part of its mission to the protection and extension of the rights and interests of those of our compatriots who will be outside the Volkstaat. This protection and extension of the interests and rights of our people can best be served at local level, i.e. city council level. Local government is the level of government which functions closest to each individual and community.

In the view of the Freedom Front our towns and cities do not merely consist of a number of individuals, but of clearly identifiable communities. It is not the aim or the task of the Freedom Front to speak on behalf of other communities, and it will not do so.

It is the goal of the Freedom Front to unite Afrikaner communities in all our towns and cities where concentrations of Afrikaners can be found. Only if Afrikaner communities combine to work in unison will it be possible to speak with one voice and in doing so have a much better opportunity than otherwise to protect and extend the rights and interests of our people.

Afrikaner communities will, however, only be able to unite and to speak in unison if a feasible plan is adopted. It must be a realistic plan, one that takes into account the realities of the present situation in which we find ourselves. Any political party or organisation that once again promises

exclusive white residential areas is politically dishonest and misleads our people. Such promises are contrary to the Constitution and will not survive challenges in the Constitutional Court.

For these reasons the Freedom Front intends utilising the municipal elections of November 1995 to propose to our people a realistic, workable plan, which will survive a challenge in the Constitutional Court.

The exciting, realistic plan of the Freedom Front is the following:

1. South Africa does not consist only of nine geographical areas known as provinces and individuals who are to be found in towns and cities. South Africa also consists of communities that share a common language and cultural heritage [compare Principles 11, 12 and 34 of Annexure 4 of the Constitution].
2. It is the view of the Freedom Front that the Afrikaner is precisely such a community sharing a common language and cultural heritage, and must therefore be recognised and protected as such in the Constitution and any future dispensation at local government level, which is now being negotiated. When the Freedom Front therefore refers to a community or communities, it refers to a community or communities bound by a common language and cultural heritage, within the meaning of these terms as used in the Constitution itself.
3. Each community sharing a common language and cultural heritage is manifestly the best able to deal with its own precious and sacred interests.
4. The Freedom Front acknowledges that there are also certain other matters, i.e. matters that do not belong to a particular community, but which are territorially bound, such as roads sewerage, water, etc.
5. In the opinion of the Freedom Front a clear distinction should be drawn in each city or town between functions and powers that are linked to communities or persons and those functions and powers that are territorially linked.
6. It is the view of the Freedom Front that all functions and powers within the jurisdictional area of a local authority that are identity forming elements to a community must be exercised by that community itself, if the latter prefers it and it is possible in practice. This would include, amongst others, the following functions linked to communities:
 - (a) All education ** nursery school, primary school and high school. The Afrikaner community is responsible for the teaching and education of its own children.
 - (b) Cultural matters ** this includes, amongst other things, radio, television, support of the printed media, fine arts, music, theatre, ballet, visual arts, sport, librarianship, museums, tourism and the spending of leisure time.

- (c) Family and health matters ** this includes, amongst other things, health clinics for primary health care, old age homes and service centres.
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- 7. It is the point of view of the Freedom Front that an Afrikaner Council should be elected within each area of jurisdiction of a local authority where an Afrikaner community exists. It will be the task of such an Afrikaner Council to accept responsibility, together with the Afrikaner community within such local area of jurisdiction, for the exercise, protection and extension of Afrikaner interests. Such an Afrikaner Council will be elected by all Afrikaners within the jurisdictional area concerned.

THEME COMMITTEE 1 : EQUALITY BEFORE THE LAW:

GENERAL PRINCIPLES

1. The Freedom Front is of the opinion that the right of every person to equality before the law is one of the elements of democracy, which can, as a general concept, be defined as a system of government by all the people collectively, usually through elected representatives, based on the recognition of equality of opportunities, rights and privileges, accommodating minorities, and ignoring hereditary class distinctions. In view of the fact that the new Constitution must be democratic (in terms of the Constitutional Principles) it must make provision in its chapter on fundamental rights for equality of all persons before the law.
2. Secondly, we adhere to the view that equality before the law is indeed one of the most fundamental of human rights. It is not only expressly required **by** Constitutional Principle 5 (equality of all before the law and equitable legal process), but is implicit in Constitutional Principle 3 (general prohibition of discrimination).

(a) Equality before the law

In the present context we subscribe generally to the provisions of section 8(2) of the transitional Constitution, noting that only 'unfair' discrimination should be prohibited, for it is conceivable that differentiation between persons on one of the grounds enumerated in section 8(2) would be justified in certain circumstances. So, for instance, it should be permissible to take sex into account where relevant (e.g. maternity benefits), or age where relevant (e.g. military activities). We are also of the opinion that it should not be prohibited to take sexual orientation of a person into consideration in certain circumstances, as there could otherwise be an infringement of

freedom of religion (at present section 14(1) of the transitional Constitution), as homosexual practices are contrary to some religions.

(b) Equitable legal process

Equality of all before the law and an equitable legal process requires constitutional provisions ensuring what can generally be termed 'access to justice'.

The concept 'access to justice' covers many aspects of the judicial system, but two predominant aspects should be mentioned at this stage, viz the plight of indigent litigants and the need to conduct legal proceedings in a language understood by parties to litigation, accused persons and witnesses (see, in this regard, section 107 of the transitional Constitution).

Whereas section 107 purports to deal with the latter problem, it is submitted that the provisions of section 3 of the transitional Constitution are inadequate to afford sufficient protection to at least some of the present official languages, and that these provisions, if re-enacted without amendment in the new Constitution, will have a bearing on any section in such Constitution that will replace the present section 107.

As far as indigent litigants are concerned, statutory provisions governing legal aid and a right to legal representation pose special problems, if not of a juridical nature, then at least of an economic nature (a question of financial resources and of manpower).

3. Thirdly, a distinction should be drawn between legal and factual equality (or inequality). By subscribing to the principle of equality before the law we must not be understood to allege that all people are in fact equal. People differ in various respects that may be relevant and justified in considering, for instance, their appointment to particular types of work. There is support by eminent scholars throughout the ages

for the proposition that equality and justice are synonymous, and that things that are alike should be treated alike, while things not alike should be treated differently. Relevant differences should not, therefore, preclude different treatment. This factor is relevant, too, in the context of affirmative action, referred to below.

4. In the fourth place the Freedom Front is not averse to measures such as those referred to in section 8(3)(a) of the transitional Constitution, conveniently referred to here as 'affirmative action', subject to an important caveat. We hold the view that affirmative action requirements should not be so extensive as to be counter-productive and in effect bring about reverse discrimination. Affirmative action should be aimed solely at equality of opportunity, coupled with implementation on the basis of merit only. Any other formula would be neither in the interest of the individual concerned, nor that of his employer or principal, nor of the country as a whole.

5. Fifthly, the Freedom Front is of the opinion that the requirement of equality before the law poses special problems as far as the coexistence of indigenous law on the one hand and fundamental rights contained in the Constitution and concomitant legislation on the other hand (Constitutional Principle **XIII**) is concerned.

Constitutional Principle **XIII** deals with the protection of the institution, status and role of traditional leadership, according to indigenous law. According to this Principle indigenous law as well as the common law shall be recognised and applied **by** the courts, but subject to the fundamental rights contained in the Constitution and legislation dealing specifically with the latter.

The application of the comm-on law poses no special problems. However, the application of indigenous law is now made subservient to the fundamental rights set out in the Constitution and related legislation. This means that there is a potential conflict between rules of indigenous law on the one hand and the Constitution and the abovementioned related legislation on the other hand. To avoid a clash of these two legal systems, with its potential for social and political discord and strife, the Constitution should be drafted in a manner that preserves indigenous law to the greatest extent possible. Conflict of other laws with indigenous law should in this way be reduced to a minimum.

FREEDOM FRONT

13 MARCH 1995

THEME COMMITTEE 5: JUDICIARY AND LEGAL SYSTEMS

Block 1: The relationship between different levels of the court;
a single or split judiciary

The various subdivisions of the subject-matter dealt with by this theme committee can conveniently be set out under the following headings:

- (i) Independence and impartiality of the judiciary (Constitutional Principles 6 and 7 generally;
the appointment and removal from office of judges (no specific Constitutional Principles, but sections 104 and 205 of the Transitional Constitution).
- (ii) Equality of all before the law and an equitable legal process
(Constitutional Principle 5 and section 107 of the transitional Constitution).
- (iii) The various courts in South Africa and their Jurisdiction (including enforcement powers in respect of the common law, statute law, the Transitional Constitution and indigenous law
(Constitutional Principles 7, 13 and 34).

Presumably it is contemplated that (i) above will not be dealt with in Block 1 but in one of the later blocks. This document is therefore confined to subdivisions (ii) and (iii) above.

2) Equality of all before the law -~ equitable legal process

Constitutional Principle 5, in prescribing equality before the law, specifically requires that such equality includes laws, programmes or activities that have as their object the amelioration of the conditions of the disadvantaged, including

those disadvantaged on the grounds of race, colour or gender ('affirmative action.').

The mandatory provisions of Principle 5 find their present counterpart in section 8 of chapter 3 (Fundamental Rights) of the transitional Constitution. This latter provision is, however, more extensive in scope than the provisions of Principle 5. It follows that the new Constitution need not necessarily include the extensive grounds set out in the present equality clause (section 8), one or more of which way well prove to be contentious, eg. the question of sexual orientation.

As far as the scope of the above-mentioned affirmative action requirements are concerned the view may be adopted that they should not be so extensive as to be counter-productive and in effect bring about reverse discrimination. Should affirmative action not be aimed solely at equality of opportunity, coupled with implementation on the basis of merit only? Any other formula would be neither in the interest of the individual concerned, nor that of his employer or principal, nor of the country as a whole.

Equality of all before the law and an equitable legal process requires constitutional provisions ensuring what can generally be termed 'access to justice'.

The concept 'access to Justice' covers many aspects of the judicial system, but two predominant aspects should be mentioned at this stage, viz the plight of indigent litigants and the need to conduct legal proceedings in a language understood by parties

to litigation, accused persons and witnesses (see, in this regard, section 107 of the transitional Constitution).

Whereas section 107 --.'a to deal with the latter problem, it

is submitted that the provisions of section 3 of the transitional Constitution are inadequate to afford sufficient protection to at least some of the present official languages, and that these provisions, if re-enacted without amendment in the new Constitution, will have a bearing on any section in such Constitution that will replace the present section 107.

As far as indigent litigants are concerned, statutory provisions governing legal aid and a right to legal representation pose special problems, if not of a juridical nature, then at least of an economic nature (a question of financial resources and of manpower).

3) The various courts and their Jurisdiction

Constitutional Principle VII, dealing with the qualifications, independence and impartiality of the judiciary, is merely a re-affirmation of principles already enshrined in our law, with the exception of adjudication in respect of fundamental rights.

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Constitutional Principle XIII deals with the protection of the institution, status and role of traditional leadership, according to indigenous law. According to this Principle indigenous law as well as the common law shall be recognised and applied by the court, but subject to the fundamental rights contained in the Constitution and legislation dealing specifically with the latter.

The application of the common law poses no special problems. However, the application of indigenous 1~ is now made subservient to the fundamental rights to be act out in the Constitution and related legislation. This means that there is a potential conflict between rules of indigenous law on the one hand, and the Constitution and the above mentioned related legislation on the other hand. To avoid a clash of these two legal systems, with its potential for social and political discord and strife, the Constitution should be drafted in a 'manner that preserves indigenous law to the greatest extent possible. Conflict of other laws with indigenous law should in this way be reduced to a minimum.

Ordinary statute law and the provisions of the transitional Constitution ought to create no special problems either: such provisions will be applied by all courts, within such limits on their jurisdiction as may be imposed by statute.

Constitutional Principle XXXIV envisages the self-determination of communities in certain circumstances. Self-determination in this context implies a judicial system that will be aimed also at the protection of community interests safeguarded by the Constitution. A Constitutional guarantee of community self-determination would not

be effective without appropriate measures of enforcement by the judiciary. This Principle contemplates different forms of self-determination. The adoption of a particular form of self-determination for a community will have an impact on the judicial system applicable to that community whether it will prove to be, in the words of this Principle, 'in a territorial entity within the Republic or in any other recognised way'.

The transitional Constitution leaves the existing court structures intact to a large extent. The paragraphs ~ above show that The new Constitution should make provision for the adaptation of the judiciary system in the manner respects indicated, Adaptation of the system should also take place to Give effect to the proposed general court structure set out below,

The exposition below proceeds on the assumption that a

-Dr

Constitutional Court will be Established. However, should that not be the case. the proposed Jurisdiction of a Constitutional Court, referred to below, should be taken to refer to a constitutional chamber of the-Central Supreme Court,

Constitutional provisions to ensure the independence and impartiality of the judges of the Constitutional Court will be dealt with in another block than Block 1 (see (i) above).)

The proposed general court structure

Different courts for different systems

Apart from

(a) courts dealing with indigenous law, there ought to be two different court systems in South Africa, viz

(b) courts for the different provinces or states (hereinafter merely called 'states'); and

(c) courts for the central system.

Each state must have its own lower courts, a supreme court and a court of appeal. All such courts should fall under the legislative competence of the state concerned.

1) Courts of states

General: state courts should adjudicate in state matters

The matters in respect of which the courts of states have jurisdiction should coincide with the legislative and executive competence of such states. This includes all administrative matters relating to the administration of such states, as well as all internal constitutional matters of such states.

All judicial officers (judges, magistrates, etc) of the courts of a state should be appointed by the government of such state or by a body established by such state.

A state should have a supreme court and lower courts.

Supreme Court

The supreme court of a state should have criminal and civil jurisdiction in respect of all persons in that state and causes of action arising inside such state, according to the current rules relating to jurisdiction. The supreme court of a particular state can also have specialised divisions, e.g. for labour matters, family matters, patents, water law, tax, etc.

Lower courts

Lower courts should be established to deal with a wide variety of matters, e.g. magistrates' courts (general civil and criminal Jurisdiction up to certain limits) and small claims courts. The

jurisdiction of such lower courts should extend to all criminal and Civil matters arising from the legislation of such a state or legislation by the central authority. An automatic right of appeal to the supreme court of the state should exist, but the lower

court may be approached to grant leave to appeal directly to the central supreme court in respect of matters arising from legislation by the central government.

Appeal courts for states

The appeal court in respect of all criminal and civil matters in a state should be the Appeal Court established for that particular state, but the different states can establish a joint court of appeal if they so wish.

Appeals from the supreme court of a state or from the Appeal Courts for state(s)

The Supreme Court and the Appeal Court of a state have jurisdiction to adjudicate in respect of all constitutional matters, but should be obliged to reserve a particular question affecting the powers or duties of the central government for adjudication by the Constitutional Court.

2) Central or national supreme court

A central supreme court should be established. This court may have its seat at different venues within the different states. The central supreme court ought to have original criminal and civil jurisdiction in respect of all matters relating to the legislative and executive competence of the central government.

This court should also have jurisdiction in respect of all inter-state disputes, viz. disputes between the different states, as well as disputes concerning litigation between the governments of the different states, and disputes in respect of all administrative and constitutional matters directly affecting the central legislative and executive organs and their competence.

The central supreme court should, moreover, have appellate jurisdiction in cases where leave to appeal has been granted by courts in the different states.

There should be an appellate division of the central supreme court to hear all appeals from that court.

3) An ultimate tribunal for all constitutional issues

There should be a final court of appeal in respect of all constitutional matters flowing from any proceedings before the courts of the states. This court could be (a) the central Supreme Court; (b) a separate Constitutional Court, or (c) a chamber of

the central Supreme court. The latter could have three chambers: (i) a civil chamber; (ii) a criminal chamber' and (c) a constitutional chamber.

If there should be a separate Constitutional Court an appeal to the Constitutional Court from the Court of Appeal of the states can be brought with the special leave of either the Court of Appeal of the particular state or, failing that, with the leave of the Constitutional Court itself.

The creation of a Constitutional Court, separate from the tradition judicial hierarchy, will probably lead , to problems such as the following: the overlap of jurisdiction with other courts; multiplicity of legal proceedings; protracted proceedings, due to referral of proceedings (or constitutional aspects of proceedings) from other courts to the Constitutional Court; escalation of costs, clogging of the Constitutional Court etc. (Witness the intricate provisions of, for instance, sections 101, 102 and 103 of the present transitional Constitution.)

For the reasons set out in the paragraph above it is proposed that the ultimate tribunal for all constitutional issues should be a constitutional chamber of the Central Supreme Court, subject to the autonomy of states in respect of internal constitutional matters, referred to above.

The Freedom Front will make further detailed submissions on specific aspects as the work schedule for the various Theme Committee "Blocks" unfold.

FREEDOM FRONT

THEME COMMITTEE 4 (FUNDAMENTAL RIGHTS)

SUBMISSIONS ON FREEDOM OF DEMONSTRATION AND PETITION

1. Content of the right

- 1.1 Section 16 of the transitional Constitution provides: "Every person shall have the right to assemble and demonstrate with others peacefully and unarmed, and to present petitions".

The Freedom Front is of the opinion that the above-mentioned three rights, formulated without qualification, should be qualified as set out below.

By reason of the fact that one has to do with three rights in the present context it is not feasible to attempt to give an exposition of the content of 'the right'. The content of the various rights will appear from the discussion under 1.2 below.

1.2 Controversial issues

The right to assemble peacefully

The International Covenant on Civil and Political Rights 1966 provides in article 21 that no restrictions may be placed on the exercise of the right of peaceful assembly 'other than those imposed in conformity with the law and which are necessary in a democratic society in the interests of national security or public safety, public order, the protection of public health or morals or the protection of the rights and freedoms of others'.

The restrictions referred to above reflect rules of international law generally accepted, as the above-mentioned Covenant is an international instrument reflecting the views of the majority of states in the world. These restrictions on the right accordingly form part of universally accepted fundamental rights, within the meaning of Constitutional Principle II in Schedule 4 of the transitional Constitution.

The Freedom Front proposes that identical or similar restrictions should be introduced into the new Constitution, using the present section 16 as a basis. We are of the opinion that such restrictions are necessary in the public interest. Contemporary South African events have shown that large assemblies of people cannot be effectively controlled. Breaches of the peace, public violence and criminal actions by some flow from such assemblies, unless strict controls are exercised.

The restrictions proposed by us above ought to cover also state security and disruption of commercial and community life. An extended wording of the restrictions mentioned above may, therefore, be necessary to cover these cases. As far as picketing is concerned, we suggest that it should be dealt with not in the context of this right, but in the context of fundamental rights relating directly to labour relations (at present section 27 of the transitional Constitution), as the latter should be dealt with in one 'package'.

We would like to stress that the word "unarmed" should be retained in a future bill in respect of this right, as a potential breach of the peace or the invasion of private rights would otherwise be much more likely.

The right to demonstrate

The Freedom Front submits that the internationally accepted right of demonstration is closely allied to the right of peaceful assembly. Presumably because of this reason it is mentioned in section 16 of the transitional Constitution, together with the right to assemble. It is difficult, however, to draw a line between the two in particular circumstances.

An assembly is not necessarily a demonstration: it may have the purpose of a public discussion by persons not necessarily holding the same opinions. An assembly may, therefore, prove to be not be partisan in nature or aimed at the furthering of sectional interests. A demonstration is, however, partisan by its very nature. On the other hand, a demonstration will not necessarily imply an assembly of persons: it may be manifested by a single person or a small group of persons

The significance of distinguishing between assemblies and demonstrations is that the latter are more likely to lead to a breach of the peace or Public violence, and should therefore perhaps be subject to different types of restrictions. Subject to this distinction our comments above relating to the right of peaceful assembly, together with the proposed restrictions relating to such peaceful assembly, are also applicable to peaceful demonstrations.

We would like to stress that the word "unarmed" should be retained in a future bill in respect of this right, as a potential breach of the peace or the invasion of private rights would otherwise be much more likely.

The right to present petitions

The practice in South Africa is that the exercise of a right of assembly and demonstration is often accompanied by the presentation of petitions to government officials.

The 'right' to present petitions, however, is not a universally recognised fundamental human right. The Freedom Front sees no need for the bill of rights to confer such a right. Consideration of a petition by the authorities will almost inevitably take place at a protest march or demonstration, not during it. There is no justification, in our view, for linking a right to petition authorities to a right of peaceful assembly or demonstration. If such a right were to be acknowledged, it would create the impression that there is an onus on the authorities receiving the petition to give effect to demands contained in it, which may be quite unjustified. Such an act is confrontational and not in the interest of amicable resolution of any differences that may exist in this connection.

2. Application of the right

2.1 Nature of the duty imposed on the state

The nature of the duty (in the sense of its scope and ambit) appears from paragraph 1.2 above.

2.2 Application of the right to common law and customary law

The Freedom Front is of the opinion that the abovementioned proposals relating to this part of the proposed bill of rights is in conformity with the rules of South Africa's common law. We do not anticipate any conflict between this statutory right and the broad principles of the common law in this regard. If necessary, however, common law rules in this context may supplement the statutory provisions contemplated.

As far as indigenous law (customary law) is concerned we propose that the indigenous law should be repealed to the extent of any conflict. Our motivation is that the right of peaceful assembly is a phenomenon of modern society and should therefore be seen in the context of contemporary conceptions of human rights as opposed to traditional or customary concepts.

2.3 Should this right impose a constitutional duty on actors other than the State?

The Freedom Front is of the view that there is a constitutional duty in this regard not only on the State but also on all inhabitants of the country. The proper exercise of this right can be effected not only when the State allows freedom of assembly but also when private persons allow it and do not disrupt such assemblies.

2.4 Who should be the bearers of the right?

Naturally Juristic persons cannot exercise this right, which is by its nature confined to natural persons. All citizens and lawful inhabitants of the country should possess this right. In the case of persons performing essential services, however, a right of peaceful assembly (just like the right to strike) should be formulated in such a way that it is not capable of being used as a pretext for dereliction of their duties by such persons. as such conduct is against the public interest.

2.5 Should this right be capable of limitation by the legislature?

The Freedom Front believes that the right of peaceful assembly should be capable of limitation by the legislature only to the extent permitted by international law, as reflected in the exceptions to this right referred to in paragraph 1.2 above.

2.6 Other Issues

The Freedom Front is convinced that the public interest requires that freedoms of assembly, demonstration and petition should not be permitted by the constitution in respect of 'essential services' in a wide sense. Special statutory provision should be made for the airing of grievances by soldiers, the police, medical personnel, etc., so that military discipline, law and order, the maintenance of health services, etc. can at all times be kept intact.

THEME COMMITTEE 4 (FUNDAMENTAL RIGHTS)

SUBMISSIONS ON FREEDOM OF ASSOCIATION

1. Content of the right

1.1 Constitutional Principle XII deals -with so called "Collective rights of self-determination in for maintaining organs of civil society" . Section 17 of the transitional Constitution contains the cryptic statement: "Every the right to freedom of association.

It is necessary to delineate the scope of the right of freedom of association in the present Context, which is a general Front is of the opinion that the relationship of a right of association as far as collective bargaining and other concerned (also Constitutional Principle XXVIII), should be considered in the context of labour rights, which are spe by the bill of rights and arise for discussion at a later stage.

The concept of freedom of association is, apparently, in conflict with various other principles. One of these is the g non-discrimination, in respect of which we consider the contradiction to be more apparent than real. The motivat below. Another principle apparently contradictory to the principle of freedom of association is the principle of equ case the alleged contradiction is more apparent than real: the fact that people are equal in human dignity or equal b not mean that they can insist on equal treatment with others in the case of associations catering for the special need envisaged by the principle of freedom of association. This is in accordance with Constitutional Principle XI, v acknowledgement and protection of the diversity of language and culture in South Africa.

1.2 Controversial issues

Right to dissociate

The transitional Constitution does not refer to a right to dissociate, presumably because it impliedly smacks of discrimination, which is generally disapproved of and outlawed.

However, the phenomenon of dissociation is implicit in a right to associate. If persons form a voluntary association some criteria for membership must be established. For instance, a club for the recreation of young men would necessarily exclude elderly persons and females. In this regard we adopt the premise that membership of the association must depend not only on the wish of a prospective member but also on the wish of the association as such. Any other view would lead to the absurd result that any person outside the organisation would be able to force the organisation to accept him or her as a member although he or she does not comply with the lawful rules governing the nature of the association.

The limitations placed on the exercise of the right of association by article 22(2) of the International Covenant on Civil and Political Rights 1966 are in accordance with the view expressed above. Article 22(2) provides: 'No restrictions may be placed on the exercise of this right other than those which are prescribed by law and which are necessary in a democratic society in the interests of national security or public safety, public order, the protection of public health or morals or the protection of the rights and freedoms of others. This Article shall not prevent the imposition of lawful restrictions on members of the armed forces and of the police in the exercise of this right'- The right of association can, therefore, always be exercised unless it harms the broad general interest as defined above.

'Privatised' apartheid, exclusive clubs, etc.

The possibility of 'privatised' apartheid or unofficial discrimination may be regarded as the basic objection to a right of dissociation. It has already been submitted above that a right of association necessarily implies a right of dissociation. In this regard we have used the example of exclusive clubs above. However, a collective right of self-determination in forming, joining and maintaining organs of civil society, including linguistic, cultural and religious associations shall, according to Constitutional Principle XII be recognised and protected, 'on the basis of non-discrimination and free association'.

Constitutional Principle xii has been mandatorily superimposed on the applicable body of universally accepted fundamental principles of international law relating to human rights, and is therefore predominant in the event of any conflict with the latter. This Principle implies a right of dissociation. It would, for instance, not be possible to have a linguistic, cultural or religious association unless its membership is confined to persons belonging to the linguistic, cultural or religious group concerned. This is the justification for excluding young persons from a club for retired persons, or for excluding women from a men's club or for excluding non-golfers from a golf club.

We are of the opinion, therefore, that distinctions drawn on the basis of relevant considerations, taking into account the nature of the club or association in question, do not amount to discrimination which is prohibited. It is for this reason, we submit, that the present section 8(2) of the transitional Constitution does not prohibit discrimination of all the various types enumerated, but only unfair' discrimination. In our view unfair discrimination would be

discrimination or distinction not allowed by reason of the nature and aims of the association or club concerned.

The view we have adopted above is applicable also to the concept of community self-determination envisaged by Constitution Principle xxxiv. However, the scope and implications of Principle XXXIV (which goes wider than the collective rights of self-determination in forming, joining and maintaining organs of civil society within the meaning of Constitutional Principle XII) will be dealt with extensively in a separate document.

The Freedom Front is of the view that freedom of association in the present context is applicable inter alia to social, cultural, economic, religious and political associations. In our view the limitations placed on freedom of association by the International Covenant on Civil and Political Rights (see above) should also be written into the new bill of rights.

2. Application of the right

2.1 Nature of the duty to be imposed on the State

The state is bound to respect the general freedom of association of individuals, subject only to such restrictions as are laid down by international law as reflected in the International Covenant on Civil and Political Rights 1966, referred to above.

2.2 Application of the right to common law and customary law

The Freedom Front is of the opinion that the Roman-Dutch common law and indigenous customary law cannot deal adequately with freedom of association. The latter is a contemporary concept, which must be understood in the context of evolving norms of public international law and constitutional law of the twentieth century.

2.3 Should the right impose a constitutional duty on actors other than the state?

The Freedom Front considers that not only the state but all inhabitants of the country should respect the freedom of association of individuals and that a constitutional duty in that regard should be contained in a bill of rights. Freedom of association of individuals can be infringed not only by state action, but also by the conduct of fellow citizens. This right or freedom should therefore have vertical as well as horizontal application.

2.4 Who should be bearers of the right?

we are of the opinion that all natural persons who are citizens and all aliens lawfully admitted to the country should be bearers of this right. By reason of the fact that voluntary associations have juristic personality the right should be applicable also to juristic persons, ie. voluntary associations and juristic persons created by statute.

2.5 Should this right be capable of limitation by the legislature?

The Freedom Front is convinced that freedom of association is a fundamental right as important as the prohibition of unfair discrimination. We are accordingly of the view that this right should not be capable of limitation by the legislature, otherwise than in accordance with the international law limitations referred to above and the provisions of a general limitation clause applicable to all fundamental rights (at present section 33 of the transitional Constitution).

THEME COMMITTEE 4 (FUNDAMENTAL RIGHTS)

SUBMISSIONS ON FREEDOM OF RELIGION, BELIEF AND OPINION

1. Content of the right

In the view of the Freedom Front this freedom comprises more than a single right. The relevant provisions Constitution in effect expound three different rights in this context.

The provisions of Constitutional Principle XII relating to collective rights of self-determination concerning society are relevant in the present context. Moreover, section 8(2) of the transitional Constitution prohibits discrimination on the basis, inter alia of religion, conscience and belief. Section 32(c) protects certain religious rights in the context of education.

It is section 14 of the transitional Constitution, however, that clearly indicates that diverse rights have been grouped in the present context. Section 14 guarantees the right to freedom of conscience, religion, thought, belief and expression, and states to include academic freedom in institutions of higher learning. We are of the opinion that academic freedom and freedom of religion: there is only a partial overlap. Moreover, freedom of religion does not coincide with freedom of thought and opinion. It is very difficult, if not impossible, to describe the content of this social right in comprehensive terms.

In view of the fact that the religious element is apparently the predominant element in the present context, this document will deal only with freedom of religion in this document.

The International Covenant on Civil and Political Rights in article 18.1 describes freedom of thought, conscience and religion as including everyone's 'freedom to have or to adopt a religion or belief of his choice, and freedom, either individually or in community with others and in public or private, to manifest his religion or belief in worship, observance, practice and teaching'. Controversial issues should be considered in this context.

1.2 Controversial issues

Aspects of religious freedom

The Freedom Front is of the opinion that the provisions of section 14(2) and 14(3) of the transitional Constitution are, in principle, acceptable. In our view these provisions reflect religious tolerance not only in the very broad context of section 14(1), but also in the context of state or state-aided institutions referred to in section 14(2).

We are in agreement with section 14(2) inter alia in so far as 'the appropriate authority' referred to should be able to make rules for religious observances, subject to the proviso that they are conducted on an equitable basis and that attendance at them is free and voluntary. In our view section 14(2) links up with the concept of collective rights of self-determination relating to organs of civil society (including cultural and religious associations) referred in Constitutional Principle XII, on the basis of non-discrimination and free association.

The Freedom Front is also generally in agreement with the provisions of the present section 14(3) recognising legislation relating to a system of personal and family law adhered to by persons professing a particular religion, as well as the validity of marriages concluded under a system of religious law subject to specified procedures. We are of the view, in broad context, that the plural nature of South African society and the scope of religious differences in South African society renders constitutional provisions of this nature necessary.

Despite our general agreement with the statutory provisions relating to religion set out above, we are of the opinion that the chapter on fundamental rights in the new Constitution should not (as section 8(2) of the transitional Constitution professes to do) prohibit a Person from taking into account the sexual orientation of another person where such sexual orientation (e.g. homosexuality or lesbianism) is contrary to the religious beliefs of the former person. We are of the opinion that the present section 8(2) may be interpreted as forcing a person to act contrary to his religious convictions. This, in our view, is an infringement of the concept of freedom of religion. (Compare the element of coercion referred to in the next paragraph).

We are of the opinion that the provisions of article 18.2 and 18.3 of the above-mentioned Covenant should be incorporated (with or without minor changes in wording) in the new Constitution. The former reads: 'No one shall be subject to coercion which would impair his freedom to have or to adopt a religion of his belief or choice'. The latter reads: 'Freedom to manifest one's religion or beliefs may be subject only to such limitations as are prescribed by law and are necessary to protect public safety, order, health, or morals or the fundamental rights and freedoms of others'.

Academic Freedom

Academic freedom should, in our view, be treated in the context of fundamental rights relating to education (at present section 32 of the transitional Constitution), and not under the general heading 'Religion, belief and opinion'. Submissions in this regard will be submitted at the appropriate time.

2. Application of the right

2.1 Nature of the duty to be imposed on the State

The nature the duty imposed on the state is to give full reign to human conduct based on the diversity of religious convictions in South African society, thus fostering mutual tolerance between different religious groups.

2.2 Application of the right to common law and customary law

The Freedom Front is of the opinion that the general concept of freedom of religion, belief and opinion is not contrary to common law principles. In so far as customary law (indigenous law) is concerned we are of the opinion that any religious principles possibly in conflict with freedom of religion in the context above should make way for religious tolerance generally acknowledged by the international community.

2.3 Should this right impose a constitutional duty on actors others than the State?

We are of the opinion that the state as well as all lawful inhabitants of the country should be under a constitutional duty to respect the religious convictions, beliefs and practices of all other persons. Religious tolerance should, in our view, therefore have not only vertical but also horizontal effect. Any other view would lead to social conflict and discord.

2.4 Who should be the bearers of the right?

In view of the fact that a church can be a juristic person in our law, we are of the opinion that the bearers of the right should be natural persons (i.e. all citizens and all persons lawfully in the country), as well as churches or religious associations that have juristic personality.

2.5 Should this right be capable of limitation by the legislature?

In the view of the Freedom Front this right should not be capable of limitation by the legislature otherwise than by an amendment of the relevant provisions of the chapter on fundamental rights in the Constitution itself. It should not be capable of limitation by ordinary legislation. The nature of this right is such that it cannot exist in a truncated or inchoate form.

We do not believe that either the Constitution or any other law should determine what persons should believe. The only justifiable limitation we can think of would be a curtailment of religious activities that conflict with the religious activities of other persons or groups or that contravene some other fundamental interest protected by the Constitution, such as the public order and other interests mentioned in article 18.3 of the International Covenant on Civil and Political Rights, quoted above. The widest form of religious tolerance should, accordingly, be guaranteed by the Constitution.

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FREEDOM FRONT
THEME COMMITTEE 6:
SPECIALIZED STRUCTURES OF GOVERNMENT
SUBTHEME COMMITTEE 6.3
HUMAN RIGHTS COMMISSION

I. **Does South Africa need a Human Rights Commission?**

The Freedom Front is of the opinion that South Africa does need a Human Rights Commission. The introduction of a chapter on fundamental rights into the transitional Constitution of 1994 renders necessary supplementary structures such as a Human Rights Commission. This is also the practice in a number of states that have bills of human rights in their constitutions.

Whereas the Constitutional Court would be at the apex of the judicial enforcement of human rights, it is necessary that additional machinery of an administrative nature be created (a) to establish a human rights culture in South Africa; (b) to advise and guide the government in matters relating to human rights; and (c) to investigate complaints relating to the alleged violation of human rights. A Human Rights Commission will fill this void.

2. **The composition of the Human Rights Commission**

The Human Rights Commission should, like the Constitutional Court, have the confidence of the population at large. It should, accordingly, be composed in a manner that clearly shows that it is not merely a government organ, subject to transient government policies or beliefs.

Section 115(3) of the transitional Constitution does, in some measure, create machinery aimed at appointing as members of the Commission persons who have substantial support in Parliament. We believe, however, that the status and general acceptance of this Commission will be enhanced if an even more rigorous form of election or appointment than that provided by section 115(3) is required, such as, for instance, unanimity or near-unanimity of the joint committee of the Houses of Parliament, or in some other way.

3. **The proposed role and functions of the Human Rights Commission**

The Freedom Front is in substantial agreement with the provisions of section 116 of the transition Constitution of 1994 setting out the powers functions of the Human Rights Commission in the transition phase, and subscribe to the principles enshrined in subsections (1), (2) and (3) of this section as a basis for provisions of the contemplated new Constitution.

We wish to stress, however, that the present section 116(1)(b), which enables and obliges the present Commission to "develop an awareness of fundamental human rights among all the people of the Republic should be expanded to cover expressly the initiation of programmes aimed at the education and training the population in respect of democratic values and human rights, as well as public information projects." should be pointed out that the International Red Cross has for a number of years been promoting the study of human rights in general and humanitarian law in particular in universities in many states all over the world. In our view such awareness should be brought about also in schools, even though it may be in a more elementary form.

Despite our general agreement with the provisions of section 116 of the present Constitution, we raise the following points of criticism:

- (i) All matters relating to the Human Rights Commission should be regulated " the Constitution. We cannot accept the idea that additional powers and functions of the Commission could be assigned "law" [see section 116(1)], i.e. by ordinary Act of Parliament, as this would make the legal position volatile confidence in the entire structure.
- (ii) The words "which form part of South African law" in the present section 116(2) should apply not only to international human rights law (as it does at present), but also to "other relevant norms of international law" mentioned in this subsection.
- (iii) The provision for financial assistance to litigants (and related forms of relief) in proceedings relating to alleged violation of human rights is too ambitious and its object unattainable in most cases. Moreover, why should financial assistance be limited to cases involving contravention of human rights? The remedy of financial assistance should be considered in the wider context of "access to justice" by indigent litigants generally (dealt with by Theme Committee 5).

4. The relationship between the Human Rights Commission and other structures of government

The Freedom Front is of the opinion that it is unnecessary to have a separate Commission on Gender Equality. In its view gender equality can be adequately advanced and ensured by invoking the general

rule of international law prohibiting unfair discrimination, at present enshrined in section 8(1) and (2) of the transitional Constitution and prohibiting expressly unfair discrimination on the grounds of sex. Surely separate commissions on all the matters mentioned in section 8(2) are not justified. Why should sex be excepted?

The Human Rights Commission should, in the view of the Freedom Front, not have any relationship with other specialised structures of government, as this would prejudice its autonomy and independence. It should, however, be able to refer or direct a complainant or a case to the Constitutional Court (although the latter is not a "specialised structure of government"), as is the case in certain European jurisdictions.

5. Other points arising from document B (Draft Report: Human Rights Commission)

(a) Page 1:

A "law reform programme" should be confined to human rights law reform. Law reform generally should still be dealt with by the South African Law Commission.

(b) Page 3

Question 3.2

No, the Human Rights Commission should primarily deal with abuses that occur horizontally. The chapter on fundamental rights in the Constitution should in principle primarily have vertical operation (subject against the State). (This question is still being discussed in Terms of Reference Committee 4.) The same principle should apply here.

(c) Question 3.3

No, public enquiries are in our view not the most appropriate way of dealing with the matter of Socio-Economic rights. We have already stated above (see 2) that the Human Rights Commission should not be merely a government organ: it should be an independent, quasi-judicial body.

(d) Question 3.4

No, the Commission should not generally have the power to arbitrate and make determination: (it may, perhaps, mediate), lest it transgress in a sphere usually reserved for courts of law.

VRYHEIDSFRONT

DRAFT: FOR DISCUSSION PURPOSES ONLY

FREEDOM FRONT

SUBMISSION TO THEME COMMITTEE 2: BLOCK 2 AND 3: STRUCTURES OF GOVERNMENT

INTRODUCTION

1. This proposal by the Freedom Front may be influenced by the proposals which the Volkstaat Council will make. It is however, not expected that the Volkstaat Council's proposal will have any significant influence on the structures of government proposed here.

CONSTITUTIONAL PRINCIPLES

2. The Constitutional Principles to be adhered to are the following:

2.1 Principle X:

Formal legislative procedures shall be adhered to by legislative organs at all levels of government.

2.2 Principle XII:

Collective rights of self-determination in forming, joining and maintaining organs of civil society, including the linguistic, cultural and religious associations, shall, on the basis of non-discrimination and free association, be recognised and protected.

2.3 Principle XVI:

Government shall be structured at national, provincial and local levels.

2.4 Principle XVIII[2]:

The powers and functions of the provinces defined in the Constitution, including the competence of a provincial legislature to adopt a constitution, shall not be substantially less than or substantially inferior to those provided for in this Constitution. [Read with Section 160[31]al of the constitution].

2.5 Principle XXXII.

The Constitution shall provide that until 30 April 1999 the national executive shall be composed and shall function substantially in the manner provided for in Chapter 6 of this constitution.

THE LEGISLATURE

CONSTITUTION OF PARLIAMENT

3. Parliament should consist of two chambers, the National Assembly and the Senate.

THE NATIONAL ASSEMBLY

4. The Composition of the National Assembly.

- 4.1 The number of representatives in the National Assembly should be determined by:

- a. The functions of the central government. If more power is devolved to the provinces, the number of representatives in the National Assembly should be decreased in favour of more substantial representation in the provinces.
- b. The role played by Select Committees. At present Select Committees play a vital role and their role should not be changed. Smaller political parties find it difficult, but very important, to participate in all the activities of the Select Committees and should the representation become smaller, the role of the Select Committees would decrease in importance. Effective central government therefore also requires a minimum strength.
- C. With the present functions of the central government, the number of representatives in the National Assembly should not be less than 350 and not more than the present 400.

- 4.2 The following sections of the present constitution should be maintained:

- a. Section 40,[11 to [5]: Composition of the National Assembly.
[see 4.1 above].
- b. Section 41: Speaker and Deputy Speaker of the National Assembly.
- c. Section 42: Qualification for membership of the National Assembly.
- d. Section 43: Vacation of Seats.

- e. Section 44: Filling of Vacancies.
- f. Section 45: Oaths or Affirmation by members of the National Assembly.
- g. Section 46: Sittings of the National Assembly.
- h. Section 41: Quorum.

THE SENATE

5. Introduction.

5.1 At present, the Senate in South Africa is very much a replica of the National Assembly. Provincial interests are not significantly represented by the Senate and they have the power to properly review legislation passed by the National Assembly.

5.2 South Africa should have a second chamber because of the following reasons:

- a. The ethnic, racial, regional and linguistic differences in South Africa. In most countries where these conditions exist, a second chamber was structured over the interests of cultural and corporate groups.
- b. The conflicting interests that cannot be reconciled at national assembly level and recognise provincial centres of power. A second chamber is normally designed to protect of power.

5.3 The Senate should therefore reflect the truly diverse nature of the country and society, different peoples of South Africa. Such a chamber is required to act as nation building institution the differences mentioned above and to reduce the potential for political conflict.

5.4 The role of the Senate within the overall political process must be defined in such a way that it becomes a cost effective goal orientated institution which will command respect and earn dignity in fulfilling a crucial role in government. It should not frustrate democracy but play an indispensable role in facilitating not only effective and stable government but also the building of culture and common purpose in South Africa. Constitutionally, the South African Senate should give the world an instrument for reconciliation which is truly South African.

6. Composition and Mandate of the Senate. The number of representatives in the Senate should be determined by the functions allocated to the Senate. The FF. proposes that the composition should be as follows:

6.1 8 Senators from each province, nominated by the parties represented in the provincial legislature within 10 days of an election held in pursuance of the

dissolution of parliament. The Senate should, as its first and primary function, look after provincial and cultural interests. In order to do this, the constitution should give the Senate an original mandate and power to:

- a. Interact with the Provinces, and/or representatives of corporate groups.
- b. Review, revise and even veto legislation related to the Provinces.

Section 61 of the present constitution should be amended accordingly.

6.2 8 Senators nominated by the "National Council of Traditional Authorities". These Senators should form the Executive of the National Council of Traditional Authorities. Note. This proposal should be finalised in Block 4 [Traditional Authorities]. The specific functions of the Senate in respect of Traditional Authorities should also be determined in Block 4.

6.3 8 Senators elected by voters registered on the community voters role as Afrikaner community voters. The number of Senators should be determined by a formula based on percentage voters represented by the Afrikaners seeking self-determination. Note. The "community voters role" referred to will be part of the FF. proposal for self-determination.

- 6.4 Should other ethnic groups seek cultural self-determination, they could also be given represent
- 6.5 As in the case of provincial interests, the Senate should have a special mandate to protect the the language and cultural communities in South Africa.

Note. The formulation of the proposed constitutional changes to the second chamber should be referred to th experts.

7. Functioning of the Senate. The following sections of the 1993 Constitution should be retained in the r much as they do not contradict the alterations proposed in paragraph 6:

- | | | |
|-----|-------------|---|
| 7.1 | Section 49: | President and Deputy President of the Senate. |
| 7.2 | Section 50: | Qualification for membership of the Senate. |
| 7.3 | Section 51: | Vacation of seats by Senators and filling of vacancies. |
| 7.4 | Section 52: | Oaths of affirmation by Senators. |
| 7.5 | Section 53: | Sittings of the Senate. |
| 7.6 | Section 54: | Quorum. |

THE NATIONAL EXECUTIVE

THE HEAD OF STATE **AND** THE HEAD OF GOVERNMENT

8. The FF proposes that the following Sections in the 1993 Constitution, should be maintained:
 - 8.1 Section 75: "The executive authority of the Republic with regard to matters falling within the le; Parliament shall vest with the President, who shall exercise and perform his or her powers and f in accordance with this Constitution".
 - 8.2 Section 76: "The President shall be the Head of State".
9. The FF is of the opinion however, that the functions of Head of State and Head of Government efficiently by one person only. The workload of the President must therefore be lightened by the appoint Deputy Presidents or a Prime Minister.
10. Election of the President.
 - 10.1 The National Assembly and the Senate shall at a joint sitting, which must be their first sitting been convened, elect one of the members of Parliament as President.
 - 10.2 Sections 77[2],[3],[4] and [5] should be maintained.
11. The following Sections in the 1993 Constitution should also be maintained:
 - 11.1. Section 78: Oath of Affirmation.
 - 11.2 Section 79: Remuneration of the President.
 - 11.3 Section 80: Tenure of Office of the President.
 - 11.4 Section 83: Confirmation of executive acts of the President.
 - 11.5 Section 86: Acting President.
 - 11.6 Section 87: Removal from office of President and Deputy President/Prime Minister.

THE CABINET

12. Composition of the Cabinet. The Cabinet shall consist of the President, Deputy Presidents/Prime M than 24 Ministers appointed by the President.

13. Appointment of Cabinet Members. The President shall appoint members of the Cabinet, or fill any from the National Assembly or the Senate.
14. Terminating a Cabinet Appointment. The President shall terminate any appointment to the Cabinet becomes necessary to comply with the spirit and the letter of the Constitution or it is deemed to be in government.
15. Cabinet Procedure. Meetings of the Cabinet shall be presided over by the President or by a Deputy Pr
16. Temporary assignment of Minister's powers and functions to another Minister. Section 90 should be main
17. Transfer of Minister's power and functions to another Minister. Section 91 should be maintained.
18. Accountability of Ministers and Cabinet. Section 92, [1] to [4] should be maintained.
19. Votes of no confidence. Maintain Section 93.
20. Appointment of Deputy Ministers. Section 94 should be maintained.

THE PROVINCIAL LEGISLATURE

THE LEGISLATURE

21. There shall be a legislature for each province. The following sections in the 1993 Constitution should
 - 21.1 Section 125: Provincial Legislature.
 - 21.2 Section 127: Composition of Provincial Legislature. The
number of MPC's should be determined by the
functions and powers allocated to provinces.
 - 21.3 Section 128: Duration and dissolution of provincial legislatures.
 - 21.4 Section 130: Sittings of Provincial legislature.
 - 21.5 Section 131: Speaker and Deputy Speaker of provincial
legislature.
 - 21.6 Section 132: Qualification for membership of provincial
legislature.
 - 21.7 Section 133: Vacation of seats and filling of vacancies. §
section 133[2] to be scrapped.

- 21.8 Section 138: Oath or affirmation by members.
- 21.9 Section 135: Powers, privileges and immunities of provincial legislature members.
- 21.10 Section 136: Penalty for sitting or voting when disqualified.
- 21.11 Section 137: Rules and orders.
- 21.12 Section 138: Quorum.
- 21.13 Section 139: Requisite majorities.
- 21.14 Section 140: Assent to Bills.
- 21.15 Section 141: Signature and enrolment of provincial laws.
- 21.16 Section 142: Public access to provincial laws.
- 21.17 Section 143: Administration of provincial legislatures.

PROVINCIAL EXECUTIVE AUTHORITY

22. The executive authority of a province shall vest in the Premier of the province who shall exercise and perform his or her powers and functions subject to and in accordance with the constitution of South Africa.

23. The following sections of the 1993 Constitution should be maintained:

- 23.1 Section 145: Election of Premiers.
- 23.2 Section 146: Tenure of and removal from office of Premiers.
- 23.3 Section 148: Acting Premiers.

EXECUTIVE COUNCILS

24. The Executive Council of a province shall consist of the Premier and not more than 10 members appointed by the premier.

25. The Premier shall determine portfolios, appoint members to Executive Councils, terminate appointments, in pursuance of the purposes of the constitution and in the interest of good government, and fill vacancies when necessary.

26. The following sections of the 1993 Constitution should be maintained:

- 26.1 Section 150: Executive Council procedure.
- 26.2 Section 151: Temporary assignment of powers and functions to executive council members.
- 26.3 Section 152: Transfer of powers and functions from one member to another member.
- 26.4 Section 153: Accountability of members of the executive council.
- 26.5 Section 154: Votes of no confidence.

FREEDOM FRONT
20 MARCH 1995

FREEDOM FRONT

THEME COMMITTEE 4 (FUNDAMENTAL RIGHTS)

SUPPLEMENTARY SUBMISSIONS ON CHILDREN'S RIGHTS

The Freedom Front makes the following submission in connection with children's rights, to be added to its document headed "Submissions on Children's Rights". If the present section 30 of the Transitional Constitution is taken as the basis of a corresponding provision in the new Constitution, the following amendments to section 30 should be made:

- (i) renumber the existing subsections (1)(d) and (1)(e) to (1)(f) and (1)(g);
- (ii) section 30(1)(d) and (e) to read as follows:

"Every child shall have the right.....

- (d) to receive primary education funded by the state, irrespective of whether such education is received from an educational institution controlled by the state or privately, but subject to standards, progress and conduct generally determined.
- (e) to receive secondary education, provided that state funding, if any, of such education shall occur without discrimination, irrespective of whether such child attends an educational institution controlled by the state or privately, but subject to standards, progress and conduct generally determined".

Motivation: All children should be treated equally, also as far as education and the funding of education is concerned.

FREEDOM FRONT

THEME COMMITTEE 4 (FUNDAMENTAL RIGHTS)

SUBMISSIONS ON FREEDOM AND SECURITY OF THE PERSON

I. Content of the right

The freedom of the person is regarded as one of the major civil liberties. It connotes freedom of movement to participate in or abstain from lawful activities, the right not to be arrested or imprisoned, save on defined and limited grounds, etc. It is the belief in this liberty which lies at the basis of opposition to excessive police and governmental powers, to detention in concentration camps or otherwise, without trial, to torture of any kind, and to the infliction of cruel, inhuman or degrading treatment or punishment.

In respect of torture we are of the opinion that the definition of 'torture' in the United Nations Convention against Torture and Cruel, Inhuman or Degrading Treatment or Punishment, adopted by the General Assembly on 10 December 1984 is too narrow: it is confined to acts by public officials or other persons acting in an official capacity. The Freedom Front submits that the prohibition of torture should expressly apply to everyone, i.e. the present section 11(2) of the Constitution should also have horizontal application.

The concept of freedom of the person is a basic element of the concept of democracy. It is, however, necessary to impose some restrictions on personal freedom. Such restrictions should increase as society becomes more developed and has more regard for the protection of others. Freedom does not mean licence, and the freedom of one person must be limited to provide for the freedom of others.

It should be the function of courts of law to decide where to draw the line between 'conflicting' freedoms of different persons. In this context the public welfare may well demand that a person's physical freedom must be sacrificed in the public interest. This is so in criminal proceedings in particular. A person should not, for instance, have a right to be released from detention, with or without bail, 'unless the interests of justice require otherwise', as is presently provided in section 25 (2) (d) of the transition Constitution. This provision has already led to great differences of opinion in the administration of justice. If a prima facie case of commission of a serious crime by an accused has been made out, the

burden of proof should be on the accused to satisfy the court that justice demands his freedom and not his incarceration, as the interests of society should be paramount in the administration of justice.

Even in civil law justice may require that a debtor about to abscond and flee from the jurisdiction of the court should be arrested suspectus de fuga, as it has been in Roman-Dutch law and in contemporary South African Law, to abide the judgement of the court and safeguard the rights of the plaintiff in the proceedings.

2. Application of the right

2.1 Nature of the duty to be imposed on the state.

The state should be legally obliged to give maximum effect to the concepts of freedom and security of the person, subject only to curtailment of such rights imposed by a limitation clause in the bill of fundamental rights. The present limitation clause (section 33 of the transitional Constitution) provides that limitation of the law of the right of freedom and security of the person should, inter alia,

also be necessary. The Freedom Front is convinced that the Question of necessity should be determined by an independent judicial tribunal and not by any legislative or administrative body. Any other mechanism would render this right nugatory.

2.2 We are of the opinion that any conflict between common law or customary law rules relating to freedom and security of the person and the provisions of the bill of fundamental rights should be resolved in favour of the latter. This does not preclude, however, that common law or customary law provisions could be supplementary to the provisions of the bill of rights in these respects. We support this view.

2.3 The Freedom Front is of the opinion that this right should impose a constitutional duty on actors other than the state, viz all inhabitants of South Africa. In other words, it should have vertical as well as horizontal application, otherwise the protection afforded by this right would be so inadequate that it would be ineffectual in protecting this fundamental freedom.

2.4 Juristic persons cannot be bearers of this right. All natural persons lawfully in the country should be protected by this right, but not unlawful immigrants.

2.5 The question of limitation of this right by the legislature has already been dealt with under 2.1 above.

FREEDOM FRONT

THEME COMMITTEE 4 (FUNDAMENTAL RIGHTS)

SUBMISSION ON SERVITUDE AND FORCED LABOUR

1. Content of the right

The concept 'Servitude' (also referred to as 'slavery' or 'serfdom') is a relic of the nineteenth century. The Congress of Vienna in 1815 condemned in principle the slave trade, which, together with the institution of slavery, was the object of a large number of international treaties and national statutes during the next hundred years.

The concept 'forced labour' is narrower than that of 'servitude': a person can be subject to forced labour although is not held in slavery or servitude. Nevertheless there is an overlap.

The subjection of one person to a state of servitude for the benefit of another is today prohibited by a universal accepted rule of customary international law and by the legal systems of many states.

The International Covenant on Civil and Political Rights 1966 contains the following brief prohibitions in article 8: '1. No one shall be held in slavery; slavery and the slave-trade in all their forms shall be prohibited. 2. No one shall be held in servitude'. The same article deals more extensively with forced or compulsory labour (see below).

It would serve no purpose to attempt to describe the content of the phenomenon of servitude: it is historically outdated. The content of the phenomenon of forced labour is, however, of contemporary significance. It could arise in the context of detention by administrative measures not authorised by a court of law.

Section 12 of the transitional Constitution reads: No person shall be subject to servitude or forced labour'. This provision is too cryptic, and should be expanded.

The Freedom Front submits that the prohibition of forced labour should be subject to the following qualifications:

- (i) labour reasonably imposed as a punishment for a crime by a court of law of competent jurisdiction, to be performed during detention pursuant to an order by such court;
- (ii) reasonable military or civilian national service (of equal duration), the individual concerned having a choice between the two on the basis of religious or conscientious objection;
- (iii) any service exacted according to law during a duly proclaimed state of emergency.

This proposal is substantially in agreement with article 8 of the International Covenant on Civil and Political Rights 1966, save that we cannot subscribe to the view that the exception should

extend to 'work or service which forms part of normal civil obligations', as this is too vague and opens the door for abuse.

2. Application of the right

- 2.1 The nature of the duty to be imposed on the state is that it should respect the content of the right as set out above and ensure its enforcement by independent courts of law.
- 2.2 The application of the right to common and customary law should be such that all rules of common and customary law in conflict with the right should be superseded by the provisions of the bill of rights in this regard.
- 2.3 In principle this right is, by its nature, applicable primarily to the vertical relationship (state versus subject). Any form of servitude or forced labour imposed by private citizens against one another should also be prohibited, but should rather be dealt with under the heading 'Freedom and security of the person'.
- 2.4 This right is not applicable to juristic persons. The bearers of the right should be all natural persons, citizens and aliens alike, and quite possibly even unlawful immigrants.
- 2.5 No, this right should not be capable of limitation by the legislature, as it would reduce the efficacy of the right as guaranteed in the bill of fundamental rights.

FREEDOM FRONT

4. RIGHT TO PRIVACY (ADDITIONAL SUBMISSION)

1. Content of the right

1.1 Constitutional Principle IX (freedom of information) should be added to the short list, as publication of information can infringe the privacy of individuals concerned.

1.2 Controversial issues

See comment under Application of the Right below.

2. Application of the right

2.1 Nature of the duty to be imposed on the state. The State should be obliged by law to respect the privacy of the individual to the maximum extent that can be reconciled with effective and democratic government.

2.2 Common law and customary law provisions protecting the right to privacy should not be repealed, subject to the qualification that contemporary generally accepted rules relating to privacy in a modern democratic society must necessarily supersede any outdated concepts.

2.3 No, a right to privacy should not, in the bill of rights, impose a constitutional duty on actors other than the state. The common law, customary law and ordinary statute law (as opposed to the bill of rights) should provide adequate protection and remedies in the event of invasion of privacy by private persons. The reason why invasion of privacy by the state should be protected in all bill of rights is that the state is in a very strong position as against the individual capable in many instances of subjecting the citizen to its will, and possibly abusing its position of power. For this reason the privacy of the individual should be entrenched in a bill of rights, which would be the only effective bulwark against invasion by the state of the right of privacy of the individual.

2.4 All natural persons, whether they be citizens or persons admitted to lawful residence in South Africa, should be bearers of the right to privacy. Suspected unlawful immigrants should not have this right, as

(i) such a right might impede any inquiry into the legality of their sojourn in South Africa; and

(ii) the unlawfulness of their entry into South Africa should entitle them to be treated only with dignity (as opposed to privacy).

Juristic persons should also have a right of privacy, but this right would naturally differ in content from the right of privacy of a natural person and its ambit would be dictated by the nature and functions of the juristic person concerned.

2.5 The answer to the question whether the right to privacy should be capable of limitation by the legislature depends on

- (i) principle; and
- (ii) the scope of the limitation clause in the new constitution (at present section 33(1) of the transitional Constitution, which provides "The rights entrenched in this chapter may be limited by law of general application, provided...")

As far as principle is concerned it is at least arguable that legislation should be able to limit or curtail a right to privacy, as the circumstances in which privacy may be in issue are diverse.

As far as the scope of the limitation clause is concerned it should be noted that at present all the fundamental rights in the present chapter 3 are capable of limitation. If the same premise is to apply to the limitation clause of the new constitution the question 'Should the right under discussion be capable of limitation by the legislature?' should not be answered in respect of each individual right at this stage, but at the stage when the limitation clause is discussed.

FREEDOM FRONT

THEME COMMITTEE 1 (CHARACTER OF DEMOCRATIC STATE)

SUBMISSIONS ON THE ECONOMY (BLOCK 5)

The Freedom Front makes the following submissions in regard to the economy under the new Constitution, within the mandatory provisions laid down by the Constitutional Principles.

There are, within the present context, twin themes running throughout the Constitutional Principles: (a) democracy; and (b) regulation of certain matters relating to the economy. The exposition below will put into perspective the relationship between these two themes.

Democracy

The concept of democracy is reiterated in various Constitutional Principles, but nowhere comprehensively defined. Constitutional Principle I merely refers to 'a democratic system of government'. Constitutional Principle VIII refers to a 'multi-party democracy'. Constitutional Principle XIV refers to the requirement of participation 'of minority political parties' in the legislative process in a manner consistent with democracy (stress supplied). Principle XVII refers to 'democratic representation' at each level of government.

The nett result of the above-mentioned provisions taken collectively is the mandatory regulation of the future state on the basis of a true democracy, including guarantees relating to the interests of minority parties.

The inevitable conclusion is that the Constitutional Principles require that the future state will not be a one-party state. A further implication is that the economy should be controlled by the government only to the limited extent allowed by the Constitutional Principles. This aspect is more fully dealt with below.

Economic and fiscal aspects of the Constitutional Principles

Principle XXI contains some indication in the direction of the centralisation of economic policies. The Principle, setting out the criteria to be applied in the allocation of powers to the national government and the provincial governments, mentions in paragraph 2 'the maintenance of economic unity', and provides in paragraph 5 as follows: 'The determination of national economic policies, and the power to promote interprovincial commerce and to protect the common market in respect of the mobility of groups, services, capital and labour, should be allocated to the national government' (stress supplied).

Constitutional Principle XXI has the precursor in section 126 of the transitional Constitution. This Principle, has a precursor in section 126 of the transitional Constitution. In this section provision is made for concurrent powers by provincial legislatures and Parliament. Section 126 provides for the predominance of parliamentary legislation in respect of, inter-alia, certain aspects of the economy. Nevertheless, the general tenor of this section (reflected in Constitutional Principle XXI as far as the new Constitution is concerned - see above) must not be interpreted as a pointer in the direction of a centralised economic system. Other Constitutional Principles prohibit this. For instance, Constitutional Principle XXII prohibits that national government from exercising its powers (exclusive or concurrent) so as to encroach upon the geographical, functional or institutional integrity of the provinces.

Various Constitutional Principles indicate that the economy should not be centrally controlled, but that there should be free enterprise at all levels. For instance, Principle XX provides, inter-alia, that the 'allocation of powers between different levels of government shall be made on a basis which is conducive to financial viability at each level of government and which recognises the need for and promotes legitimate provincial autonomy.....' Principle XXV provides, inter-alia, that the national government and provincial governments shall have fiscal powers and functions which will be defined in the Constitution. Principle XXVI carries the matter further and provides that each level of government shall have a 'constitutional right to an equitable share of revenue collected nationally' so as to ensure certain goals.

Principle XXVI is further bolstered by Constitutional Principles XXVII and XXIX. Principle XXVII provides, inter-alia, that a contemplated Financial and Fiscal Commission shall recommend equitable fiscal and financial allocations to the provincial and local governments from revenue collected nationally, after taking into account, amongst other things, economic disparities between the provinces. Principle XXIX contemplates, inter-alia, the independence and impartiality of the Reserve Bank and of the Auditor-General.

Despite the indications to the contrary in Constitutional Principle XXI, it is clear from all the above-mentioned Constitutional Principles, read together, that the intention of the authors of these Constitutional Principles was not to make the economic system subservient to the will of one party or to the mechanism of a one-party state. On the contrary, the indications are overwhelming that the regulation of the economy would be subjected to the democratic process, including the legitimate role of minority parties in the governance of the state. The mere fact that different levels of government shall have a constitutional right to an equitable share of revenue collected nationally (Constitutional Principle XXVI) indicates that of centralised and authoritarian control of the economy was never contemplated.

Conclusion

The inevitable conclusion is that a democracy, including a free market system, is implied by the Constitutional Principles, taken collectively.

VRYHEIDS FRONT (FF)

23.10.1995

COMMENT ON DRAFT BILL OF RIGHTS (DRAFT OF 19 OCTOBER 1995)

NOTE: **Clauses not commented on are (provisionally) approved.**

1) Clause 4 (Equality)

Proposal: That the word 'unfairly' in clause 4(3) be retained, and that clause 4(4) be deleted.

Motivation: Clause 4(4) places the burden of proof on the respondent. This is an intolerable burden. In criminal law the accused is presumed to be innocent until proved guilty (see clause 31(3)(f)). Even in civil law the burden of proof is on the plaintiff or applicant (not on the defendant or respondent). The rule for centuries has been that he who alleges, must prove. The effect of clause 4(4) is that a mere-allegation of discrimination places the defendant at a disadvantage, for all conduct that differentiates can be described as 'discrimination', and it is not possible to engage in any human conduct without differentiating between different people and things.

2) Clause 6 (Life)

Proposal: That option 3 be adopted, provided that the right to reproductive health care (clause 22(1)) be phrased in such a manner that it does not detract from the protection of the potential life 'from the moment of conception' (clause 6(1)).

Motivation: The right to life is not one of the 'universally accepted fundamental rights', as it is qualified even in the International Covenant on Civil and Political Rights, 1966, which is the most comprehensive international instrument reflecting fundamental rights.

3) Clause 7 (Freedom and integrity of the person)

Proposal: That the words 'their [that person's] consent' in subsection (3)(c) be deleted and replaced by the words 'the necessary legal consent'.

Motivation: The consent required may be that of the person concerned or that of a guardian or other person in loco parentis. the present wording is too narrow.

4) Clause 9 (Privacy)

Proposal and motivation: The provisions of subsections (1) and (2) should qualified to make possible searches by persons authorised by warrant in accordance with the provisions of legislation relating to criminal procedure.

5) Clause 10 (Freedom of religion, belief and opinion)

Proposal: That the word 'any' in subsection (2)(a) be replaced by the words 'all the'.

Motivation: The amendment will give effect to the obvious intention of the drafter.

6) Clause 11 (Freedom of expression)

Proposal: That the words 'a diversity of opinion' in subsection (3) be deleted and replaced by the words 'a survey of the diverse opinions held'.

Motivation: The existing words do not preclude a selective choice of opinions, which is not fair.

7) Clause 12 (Assembly, demonstration and petition)

Proposal: That the words 'to assemble, to demonstrate, or to present petitions' be deleted and replaced by the words 'to assemble and to demonstrate'.

Motivation: There is no universally recognised fundamental right to present petitions, linked to the right of assembly and the right to demonstrate. If such a right were to be sanctioned it would, by implication, mean that a legal burden rests on the recipient of the petition to consider its contents, however unreasonable or unfounded it may be.

8) Clause 14 (Political rights)

Proposal: The word 'adult' should be inserted in subsections (1), (2) and (3), after the word 'Every' in each of these subsections.

Motivation: Minors are also citizens, and Constitutional Principle VIII requires universal adult suffrage.

9) Clause 16: (Freedom of movement and residence)

Proposal: Subsection (4) should be rephrased to read as follows: 'Subject to the provisions of criminal legislation relating to fugitive offenders, every citizen has the right to a passport'.

Motivation: The law should not assist a person involved in criminal proceedings to leave the country.

10) Clause 17 (Economic activity)

Proposal: The Freedom Front supports option 2, subject to the insertion of the words 'authorised by law' after the word 'measures' in subsection (2).

Motivation: The scope of affirmative measures should be regulated by law and not depend merely on administrative decisions.

11) Clause 18 (Labour relations)

Proposal: The right of workers to strike, conferred by subsection (2)(c), should not extend to workers in essential services. Moreover, the right of employers to lock-out (see subsection (3)(c)) should be retained.

Motivation:

Firstly, the grievances of workers in essential services should be regulated by special legislation adapted to the circumstances of their work, so as to ensure that disruption of essential services does not occur.

Secondly, the rights of workers in labour matters should be balanced by corresponding rights pertaining to employers.

12) Clause 20 (Property)

Proposal: In the first place, that clause 20(2) be deleted. Secondly, the Freedom Front proposes the adoption of the first proposal (dated 16 October 1995) as to the text of section 20(6), viz "Every person and community whose rights or interests in land are legally insecure as a result of discriminatory laws and practices shall be entitled to legally enforceable security of tenure".

Motivation: Firstly, deprivation of property in subclause (2) as presently phrased can take place without compensation (as opposed to expropriation with compensation). Such a deprivation, even if it is in accordance with a law of general application, can amount to arbitrary confiscation by the state, flouting the generally accepted principle in democratic societies that compensation should be paid for deprivation (expropriation) of property.

Secondly, the alternative proposal is not acceptable, as it makes tenure reform dependent on 'any law', which would undermine the guarantees given in this clause of the bill of rights.

13) Clause 21 (Housing and land)

Proposal: That the words 'and the availability of suitable alternative accommodation' in subclause (2)(b) be deleted.

Motivation: A court order for eviction can only be made where the occupation is illegal. To make the eviction subject, inter alia, to the availability of suitable alternative accommodation, is to foster the cause of illegal squatters.

14) Clause 22 (Health)

Proposal: That clause 22(1) be rephrased, to indicate that 'reproductive health care' is limited to sterilisation.

Motivation: Abortion on demand should not be sanctioned under the euphemism 'reproductive health care'.

15) Clause 23 (Social assistance, food and water)

Proposal: That this clause be reformulated in fundamental respects, to reduce the ambit of social assistance from the state.

Motivation: This clause, as presently phrased, reflects a socialist system which contradicts democratic principles. It implies that taxpayers generally should support those 'unable to support themselves and their dependents'.

15) Clause 25 (Education)

Proposal:

In the first instance, that the limitation in subclause (1)(c) relating to instruction in particular languages should be rephrased in order to make mother-tongue education compulsory.

Secondly, that subclause (2) be rephrased in order to place an obligation on the state to finance private educational institutions that are not wholly able to finance themselves.

Motivation:

In the first place, the relevant subclause, as presently phrased, denies possible instruction in languages of choice that are also official languages.

Secondly, the right to education is a universally accepted fundamental right. In so far as private educational institutions that partially finance themselves are not able to fulfil their functions, the state is obliged to supplement the deficiency. In this context the state's obligation is already diminished by the private funds of such institutions.

16) Clause 26 (Academic freedom)

Proposal: That a guarantee of academic freedom be retained in the bill of rights.

Motivation: The omission of such a provision would amount to a negation of a universally accepted fundamental rights, contrary to the spirit of Constitutional Principle II. However, the wording of subclause (2) should be rephrased to make it more specific.

17) Clause 28 (Access to information)

Proposal: Clause 28(a) should be qualified by fundamental rephrasing.

Motivation: It is completely untenable that everyone should have a right to access to 'any information held by the state'. For instance, an accused could not at all times have a right to information relating to him held by a prosecutor in a criminal case. In any event the concluding words of clause 28(b) ('that is required for the exercise or protection of any [his] rights') should be added to clause 28(a).

18) Clause 29 (Administrative Justice)

Proposal: The Freedom Front favours option 3.

Motivation: Option 1 is unacceptable in so far as it is rather cryptic, compared with option 3. Option 2 is even less acceptable, inter alia, because the deletion of the word 'procedurally' from subsection (1) has the result that the subsection would not be in accordance with the generally accepted legal meaning of the words 'procedurally unfair'.

19) Clause 30 (Access to justice)

Proposal and motivation: This clause must be reformulated, in view of the fact that it could be read as implying that a litigant in a civil case or an accused in a criminal case

can insist that that state should pay for such litigation and/or provide legal representation.

20) Clause 31 (Arrested, detained and accused persons)

Proposal: Clauses 31(1)(e), 31(2)(c) and 31(5) should be reformulated, in order to give effect to the points raised in the motivation below.

Motivation: Clause 31(1)(e) places an onerous burden of proof on the state where an accused seeks bail. The burden should rest on the accused to prove that the interests of justice require that he be released. In any event, the court should have a discretion in this regard, which should not be linked to a burden resting on the accused.

As far as clause 31(2)(c) is concerned, the words 'if substantial injustice would otherwise result' should be deleted and replaced by words having a far more restrictive effect, as the present wording will be applicable in virtually all circumstances. (the same objection also applies in the case of clause 31(3)(e).

In subsection 31(5) the words 'would bring the administration of justice into disrepute' should be deleted and should be replaced by the following words: 'would not, be in the interests of justice'.

Motivation: The exclusion of evidence is warranted on far wider grounds than the single ground that the administration of justice would otherwise be brought into disrepute.

21) Clause 32 (Limitation of rights)

Proposal: In the first place, that the words 'reasonable and justifiable' in clause 32(1)(a) should be deleted. Secondly, that clause 32(2) be deleted.

Motivation: In the first instance the argument that an entrenched right should be capable of limitation by an ordinary law of general application on the grounds of reasonableness and justifiability is untenable. It makes a mockery of the concept of entrenchment in so far as any entrenchment can easily be qualified.

Secondly, I clause 32(2) is unnecessary: Clause 4(3) (if adopted in the form proposed by the Freedom Front see above) already provides for this contingency. (Clause 32(2) implies that clause 4(3) is insufficient to prohibit unfair discrimination, and that legislation in that regard is necessary.

22) Clause 33 (State of emergency and suspension)

Proposal: In the first place, that the rights mentioned in clause 33(4)(c) be carefully scrutinised and debated before being included in this provision, as the implications of no derogation from so large a number of rights are not immediately clear.

Secondly, it should be considered whether there are any other rights that should be added to this list.

23) Clause 35 (Application)

Proposal: In the first place, the Freedom Front proposes that the words 'This Bill does not deny the existence of' in subclause (2) be deleted and replaced by the following words: 'This Bill does not detract from'.

Secondly, the Freedom Front prefers option 1 in respect of subclause (3).

Motivation: In the first place, the proposed initial words of subclause (2) are more elegant than the existing initial words. At the same time they are not unduly technical, but are in accordance with the requirements of plain language.

Secondly, option 2 is in our view not feasible, because it would be impossible to determine in advance the various rights juristic persons should be entitled to. This is a matter to be gradually clarified by the courts in interpreting the words of option 1.

VRYHEIDSFRONT

THEME COMMITTEE 4 (FUNDAMENTAL RIGHTS) SUBMISSIONS ON SOCIO-ECONOMIC RIGHTS

SUBMISSIONS ON THE RIGHT TO PROPERTY

Submissions on the right to property have already been made in a separate document. We refer to that document, and request that it be regarded as incorporated in this document.

SUBMISSIONS ON THE RIGHT TO EDUCATION

1) Content of the right

Section 32 of the transitional Constitution reads as follows:

Every person shall have the right -

- (a) to basic education and to equal access to educational institutions;
- (b) to instruction in the language of his or her choice where this is reasonably practicable; and
- (c) to establish, where practicable, educational institutions based on a common culture, language or religion, provided that there shall be no discrimination on the ground of race.

The Government's White Paper on Education and Training (Notice No 196 of 1995 of 15 March 1995), in chapter 7 deals extensively with 'Fundamental rights to education and training, and within education and training'. Under the heading 'The right to education' it discusses the provisions of section 32 (a), (b) and (c), quoted above. The Freedom Front finds it necessary to comment on some aspects of this chapter.

(a) The right of every person to basic education (section 32(a))

The Freedom Front agrees with the proposition that basic education is a legal entitlement to which every person has a claim (paragraph 11). However, the content of basic education may to the age and education level of different people. The Freedom Front agrees with the statement that 'the Ministry of Education accepts that state authorities have a continuing obligation under the Constitution to take purposeful and effective action which would enable all persons to achieve the satisfaction of this right' (paragraph 16).

The Freedom Front also agrees with the statement that the cost of the provision of schooling for all children to the proposed General Education Certificate level, at an acceptable level of quality, must be borne from public funds, and that the cost of the provision of basic education programmes for all young people and adults who require them cannot be borne by public funds alone, but must be shared among a variety of funding partners. We wish to stress, in this regard, that constitutionally this financial obligation should extend to all educational institutions whether they be created and controlled by the state or by private enterprise.

(b) The right of every person to equal access to educational institutions (section 32 (a))

The White Paper states in paragraph 18 that the precise intention of this provision must be to establish a condition of equality and non-discrimination with respect to access to educational institutions. It then continues: 'It is a provision which can only be satisfied by the exercise of equal and non-discriminatory admissions policies on the part of educational institutions. It is therefore reasonable to read this provision with section 8 of the Constitution, the right to equality.....' (paragraph 18).

In this context (see paragraph 21 of the White Paper) it is stated that '... section 8(3) specially permits the application of measures which would include special admissions regulations, which are designed to remedy the effects of past discrimination. The Ministry is of the view that the equality and anti-discrimination provisions of the Constitution should be observed and resolutely applied when an application is considered'. This statement is nothing else than affirmative action applied in a manner that amounts to reverse discrimination. The Freedom Front does not agree with the view that 'special admissions regulations' could 'remedy the effects of past discrimination'. Such special admissions regulations as are contemplated by paragraph 21 could form a cloak for admission not based on merit or potential, but on racial discrimination

Paragraph 19 of the White Paper also states that '.....the exercise of equal and non-discriminatory admissions policies cannot be interpreted to mean that any educational institution is obliged to admit every person who applies to enter. Regulation of admissions to educational institutions must be permissible in terms of the limitation provision of the Constitution (section 33), ... ' The Freedom Front tends to agree with this statement in so far as the limitation clause is concerned, although all the implications are not yet clear at this stage. The first sentence of paragraph 19 (quoted in this paragraph) is, however, cryptic and needs to be expanded and the expanded statement incorporated in the Constitution.

The White Paper states in paragraph 20 that the constitutionally permissible exceptions to the right of equal access will need to be defined by legislation. It then mentions a number of 'limiting factors'. The Freedom Front is convinced that constitutionally permissible exceptions to the right of equal access to education should be contained in the chapter of fundamental rights in the Constitution itself, otherwise it would be possible for Parliament to make

exceptions to these rights by ordinary legislative process, while the rights themselves are entrenched in the Constitution. A guarantee of this nature should be effectively entrenched.

- (c) The right to instruction in the language of every person's choice, where this is reasonably practicable (section 32(b))

The present constitutional provision for the right to instruction in the language of a person's choice 'where this is reasonably practicable' is regarded by the White Paper (paragraph 27) as an extension of the general right accorded to every person 'to use the language of his or her choice' (section 31).

The Freedom Front is of the opinion that the choice of mother tongue instruction, or that of any other preferred language of instruction is purportedly protected by this section, but the protection is watered down by the proviso that such instruction should be 'reasonably practicable for the educational institution concerned', as the particular educational institution would be given a free hand to discriminate on arbitrary grounds.

In the same context the White Paper states in paragraph 28 that the right of equal access and the constitutional prohibition of unfair discrimination on any ground, specifically including language, 'appear to ensure' (stress supplied) that preference for a particular language medium of instruction cannot be a reason to refuse admission, provided the condition of 'reasonable practicability' can be met. A more definite guarantee than this 'apparent ensuring' is necessary.

- (d) The right to establish, where practicable, educational institutions based on a common culture, language, religion, provided that there is no discrimination on the grounds of race (Section 32(c))

Common culture and language

The White Paper in paragraph 30 states that the use of the phrase 'based on a common culture, language or religion' implies that the culture, language or religion is the defining characteristic of the educational institution and its prospective clientele. It proceeds to state 'the interpretation of the right of equal access to educational institutions is affected by the right to establish institutions of this type' (stress supplied). The Freedom Front agrees with this statement: the right to establish institutions based on a common culture, language or religion is a qualification the broad-general principle of equal access, a qualification rendered necessary by the provisions of Constitutional Principle XI, according to which the diversity of language and culture shall be acknowledged and protected and conditions for their promotion encouraged.

In paragraph 31 the White Paper states (inter alia): 'the owner's competence to set admission policy cannot be disputed' . The Freedom Front submits that the word 'owner' does not necessarily mean that the owner of the buildings is also the owner of the school. The principle

is that a school is conducted by a community. In this regard state responsibility should be reduced and management autonomy of the school must be increased.

The White Paper in paragraph 39 states : 'the Ministry of Education encourages schools, which are willing and able to offer more than one language medium in order to accommodate parental or learners' preferences, to do so, in order to provide for the learner's right of choice of language medium' (stress supplied). The Freedom Front is of the opinion that there should be a stronger obligation than mere encouragement, in order to provide for the learner's right of choice of language medium.

Religion

The White Paper in paragraph 46, dealing with the circumstances under which religious observances may be conducted in state and state-aided educational institutions, merely says that these are covered by section 14(2) of the transitional Constitution.

The Freedom Front submits that the words 'an appropriate authority', occurring in section 14(2), as the body establishing rules for religious observances, is ambiguous. It should be clarified in order to give effect to the concept of freedom of religion. In this regard the Freedom Front wishes to subscribe to the provisions of article 18(4) of the International Covenant on Civil and Political Rights, 1966, which reads: 'The States Parties to the present Covenant undertake to have respect for the liberty of parents and, when applicable, legal guardians to ensure the religious and moral education of their children in conformity with their own convictions'. (Stress supplied). (A similar provision occurs in article 13.3 of the International Covenant on Economic, Social and Cultural Rights, 1966.)

2) Application of the right

2.1 Nature of the duty imposed on the state

The nature of the duty imposed on the state appears from the exposition above.

2.2 Application of the right to common law and statute law

Common law and statute law relating to education will be repealed by implication (if not expressly) to the extent of any conflict with the provisions of the Constitution contemplated above.

2.3 Should the right to education impose a constitutional duty on actors other than the state?

Yes. There should be a constitutional duty to provide education on all communities and, through them, on all schools and other educational institutions concerned with child and adult education.

2.4 Who should bear this right?

In our view the children concerned should be the direct bearers of the right to education. However, the right to education of children should also be capable of enforcement at the instance of the parents of such children, as well as at the instance of schools and other educational institutions, conducted under the auspices of state authorities or communities.

2.5 Should this right be capable of limitation by the legislature?

It is difficult to tell at present whether this right should be capable of limitation by legislation. The only limitation which comes to mind at present is limitation by reason of insufficient financial resources.

SUBMISSIONS ON FREEDOM OF LANGUAGE AND CULTURE

1. Content of the right

The transitional Constitution deals in the chapter on Fundamental Rights with a single right relating to language and culture, viz . section 31, which reads as follows: 'Every person shall have the right to use the language and to participate in the cultural life of his or her choice'.

Section 3 of the transitional Constitution contains extensive provisions relating to languages in South Africa, but this section does not form part of the chapter on Fundamental Rights. On the assumption that it will not form part of the chapter on Fundamental Rights in the new Constitution, it will not be discussed here.

Constitutional Principles relevant to freedom of language and culture are : Principles XI, XII, XX, XXXIV. Principle XI reads: 'The diversity of language and culture shall be acknowledged and protected, and conditions for their promotion shall be encouraged'. Principle XX deals with the allocation of powers between different levels of government on a basis which, inter alia, acknowledges 'cultural diversity'. Principle XII reads : 'Collective rights of self-determination in forming, joining and maintaining organs of civil society, including linguistic, cultural and religious associations, shall, on a basis of non-discrimination and free association, be recognised and protected' (stress supplied). Principle XXXIV, dealing with a notion of the right to self-determination by communities, provides that 'any community sharing a common cultural and language heritage' shall have such a right.

In view of the very specific nature of the provisions of the transitional Constitution and of the Constitutional Principles referred to above, the content of the concept of freedom of language and culture must be gleaned from these provisions and not from the more general provisions of international covenants or conventions dealing with matters of language and culture.

The content of rights of language and culture can only be described in very general terms. This is illustrated by the general provisions section 31, as well as the very general provisions of Constitutional Principle XI. It should be noted that the present section 31 only applies to social intercourse between subjects of the state and not to the use of official languages, which is at present dealt with in section 3 of the transitional Constitution and which falls outside the chapter on Fundamental Rights. It is clear that the transitional Constitution makes a clear distinction between freedom of language and culture on a social level and language rights that individuals may have vis-&-vis the state. In these circumstances we believe it will be fruitless to attempt to ascertain precisely what the content of rights of language and culture is.

2. Application of the right

2.1 Nature of the duty imposed on the state

By reason of the fact that freedom of language and culture as envisaged by section 31 of the transitional Constitution applies only to social intercourse between subjects amongst themselves, the duty imposed on the state in this regard by Constitutional Principle XI is limited to the protection of the diversity of language and culture and the encouragement of conditions for their promotion. The precise scope of these vague obligations will have to be determined by judicial interpretation in future.

2.2 Application of the right to common law and statute law

Common law and statute law will to very large extent, if not completely, be supplanted by the provisions of the new Constitution relating to this right.

2.3 Should the right to education impose a constitutional duty on actors other than the state?

Yes, if a provision corresponding to the present section 31 is inserted in the new Constitution it will impose a constitutional duty on all persons to tolerate and not to interfere with the use of language and participation in the cultural life chosen by the person concerned.

2.4 Who should bear this right?

All natural persons lawfully in the country and all lawful cultural associations, whether of a statutory nature or not, should be bearers of this right.

2.5 Should this right be capable of limitation by the legislature?

No, we do not believe that the legislature should be empowered to limit the exercise of language and cultural rights, as such rights form the very essence of a people. Moreover, we do not believe that the general limitation clause (at present section 33 of the transitional Constitution) or provisions in the new Constitution relating to a state of emergency (at present section 34 of the transitional Constitution) should have any application to the exercise of language and cultural rights per se.

SUBMISSIONS ON THE RIGHT FREELY TO ENGAGE IN ECONOMIC ACTIVITY

1. Content of the right

Section 26 (1) of the transitional Constitution provides: 'Every person shall have the right freely to engage in economic activity and to pursue a livelihood anywhere in the national territory'. Section 26 (2) contains an affirmative action provision, subject to the proviso that the measures authorised by this sub-section 'are justifiable in an open and democratic society based on freedom and equality'. The Freedom Front reiterates its view already expounded in earlier submissions, viz. that affirmative action should only be allowed to the extent that it creates equal opportunities and that implementation should be on the basis of merit only.

The transitional Constitution contains two provisions of fundamental importance to economic activity. None of these, however, is to be found in the chapter on Fundamental Rights. The one is section 126, dealing with the legislative competence of provinces, and the other is Constitutional Principle XXI, paragraph 5, which lays down the requirement that the determination of national economic policies, inter alia, should be allocated to the national government.

By virtue of the fact that section 126 does not fall under the chapter on Fundamental Rights, it would be, strictly speaking, out of place to deal with those provisions in any submission to Theme Committee 4. The South African Law Commission in its Final Report on Group and Human Rights (at page 106) points out that this right does not appear in any major international instrument, but is not unknown to some national constitution. It also points out that this right affords very limited protection at present, as it is subject to double circumscription.

2. Application of the right

Application of the right is not discussed here, as the terse provisions of section 26 of the transitional Constitution, if re-enacted in the new Constitution, will have to be interpreted by the courts.

SUBMISSIONS ON RIGHTS IN RESPECT OF LABOUR

1. Content of the right

Rights relating to labour are contained in section 27 of the transitional Constitution. Constitutional Principle XXVIII contains principles substantially similar to the content of section 27.

Labour rights are in a state of flux at present, and until some fundamental principles have crystallised it is very difficult to propose provisions relating to labour for the new Constitution. In this connection the South African Law Commission in its Final Report on Group and Human Rights states (at page 139): 'It is evident that the debate in South Africa concerning the inclusion and protection of labour rights in a Bill of Rights is still a lively one'. The same report at page 140 states: 'the Constitutional protection of labour rights is not a general phenomenon'. In these circumstances the Freedom Front does not at this stage wish to make any general submissions relating to labour rights. We shall confine ourselves to two submissions, set out below.

The Freedom Front submits that a provision such as section 27(4) of the transitional Constitution, which reads 'Workers shall have the right to strike for the purpose of collective bargaining' should, if re-enacted in the new Constitution, be amended to exclude such a right in respect of workers in essential services such as hospitals, etc. This does not mean that the legitimate grievances of such workers should not be dealt with in some other statutory way than by way of general provisions relating to collective bargaining.

Secondly, if the concept of a right to work is introduced in the new Constitution, the Freedom Front would submit that the proposal of the South African Law Commission qualifying such right, should be implemented. This proposal reads: 'Every person shall have the right to work, under proper conditions, and to follow his or her vocation freely, in so far as existing conditions of employment permit'. The Freedom Front wishes to stress, however, that this is only an alternative submission, as it does not believe that a right to work can be a justiciable right, to be inserted in a bill of rights, the provisions of which must be capable of enforcement in a court of law in accordance with Constitutional Principles II and VII.

2. Application of the right

In view of our submissions above we make no recommendations relating to the application of the right.

SUBMISSIONS ON ENVIRONMENTAL RIGHTS

1. Content of the right

Section 29 of the transitional Constitution provides : 'Every person shall have the right to environment which is not detrimental to his or her health or well-being'.

The South African Law Commission in its Final Report on Group and Human Rights (page 108) has proposed that this provision should be rephrased to read as follows: 'Every person shall have the right to an environment which is not detrimental to the public health or well-being (stress supplied)'. The Freedom Front supports the latter formulation (as opposed to that of the present section 29 of the transitional. Constitution), as section 29 would confer this constitutional right also to a person who is particularly susceptible to a harmful physical environment. The Freedom Front proposes that the test should rather be 'public health or well-being'.

2. Application of the right

2.1 Nature of the duty imposed on the state

The nature of the duty imposed on the state cannot be expounded in the Constitution, but will have to be set out in legislation.

2.2 Application of the right to common law and statute law

Common law and statute law can supplement a general right to an environment which is not detrimental to the public.

2.3 Should this right impose a constitutional duty on actors other than the state?

Yes. In our view it is obvious that a constitutional duty should rest on all natural persons and fictitious persons who conduct any activities that could be harmful or detrimental to the public health or well-being.

2.4 Who should bear this right?

In our view all natural persons should be the primary bearers of this right. We consider, however, that statutory provision should be made for class actions to facilitate enforcement, this right in the courts, as the financial resources of individuals would in many cases be inadequate to cover the costs of such proceedings. Secondly, a class action is appropriate where the interest infringed is not limited to a particular individual, but is detrimental to the public generally.

2.5 Should this right be capable of limitation by the legislature?

We believe that this right should be capable of limitation by the legislature, but only in accordance with the provisions of the general limitation clause (at present section 33 of the transitional Constitution) and the section of the transitional Constitution dealing with a state of emergency (section 34).

VRYHEIDSFRONT

Bloemfontein

16 February 1996

FREE STATE FREEDOM FRONT PROPOSALS:

AFRIKANER SELF DETERMINATION

At a meeting of the Freedom Front Free State Provincial Party Council on 3rd of February 1996, the following unanimous decision was taken:

The Freedom Front of the Free State requests the Constitutional Assembly to consider in all earnest, the acceptance in the new Constitution, of the following Declaration of intent:

"Recognition of the right of self-determination of the South African people as a whole in this constitution, shall not be construed as precluding, within the framework of the said right, constitutional provision for the Afrikaner people to freely exercise their right of self-determination, whether in a territorial context within the republic (as being negotiated between the government of the RSA and representatives of the Afrikaner people) or in any other recognised way.

The state accepts responsibility for enabling and assisting Afrikaners to pursue their development in the cultural, social and political spheres of life

in accordance with international law and the conventions, declarations and decisions of the United Nations with respect to the principle of the self-determination of peoples, and

provided that other rights and the rights and political status of other peoples, minorities or communities of the Republic are not prejudiced in any way."

In order to pursue the self-determination of the Afrikaner people in an orderly way and in line with the Constitution, the Party Council proposes the institution by Parliament an Afrikaner Council to implement the founding of a Volkstaat and to assist Afrikaner people who want to resettle as a result of affirmative action.

This Afrikaner Council should have fiscal and monetary powers to help with the development of potential growth point and the raising of funds to assist therewith.

SIGNATURE ILLEGIBLE

CHAIRPERSON

FF FREE STATE

VRYHEIDSFRONT FREEDOM FRONT

21 February 1996

THE RIGHT TO SELF-DETERMINATION

I refer to the general invitation for comment on the Refined Working Draft (Third Edition) of the Constitutional Assembly.

In view of the decision taken by the Constitutional Assembly (November 1 1995) on the issue of the right to self-determination, and on the strength of the Constitutional Principle XXXIV which I submit, must be considered regulatory in this respect, I wish to comment as follows:

1 . In recent years the right to self-determination has gained new significance, and in International Law a lively debate is shaping on the concept which is of course related to the need to find peace and an acceptable framework for co-existence, particularly in those circumstances where friction is latent or active in conflict. The principle of self-determination has grown in significance from its limited application in the colonial situation to include the rights of national minorities, or ethnic, religious or linguistic minorities within a state and within pluralistic societies.

In this respect I submit a number of papers presented by my Party in dialogue on the issues around self-determination. I suggest they be made available to the members of the Constitutional Assembly as resource material for the pending discussion by the Assembly on self-determination. I maintain that the true concept of self-determination and the debate around it is largely unknown in South Africa and often mutilated by the abuse of the concept by racist orientated pressure groups.

2. Since the publication of the Covenant on Civil and Political Rights in 1966, but particularly in the past decade, the concept has developed within the ambit of the general concept of human rights. There is within the larger international community a growing realization that the formulation of human rights and freedoms in terms of the individual only is inadequate and that, whatever the difficulties may be in this respect, the rights and freedoms of a community in which individuals live, also have to be considered and articulated with a purpose of further safeguarding human rights and to facilitate peace and tolerance in society.

3. In this respect I want to draw your attention to two examples of what I mean. The first example relates to the proposals on minority protection within the European Union.

The draft on Fundamental Rights of persons belonging to the Ethnic Groups in Europe, which was prepared by a committee of experts which was formed after the meeting of the Council of Europe Summit in October 1993. The draft is designed to become an additional protocol complementing the European Convention on Human Rights.

The contents of this draft is done under the following headings:

I Fundamental Rights of Persons belonging to Ethnic Groups in Europe

Draft for an Additional Protocol to the ECHR.

Preamble

i. General Provisions

Protection of ethnic groups within the framework of Human Rights.

ii. General Fundamental Rights

Right to identity (existence) and protection from threat. Right to non-discrimination, equality of treatment and equal opportunities.

iii. Special Fundamental Rights

Right to language.

Right to education.

Right to separate organizations.

Right to unimpeded contacts.

Right to information.

Right to proportional access to the public service.

Right to political representation.

Right to autonomy.

iv. Guarantee of Rights and Legal Protection

Right to remedy and duties of persons belonging to ethnic groups.

Right to an Ombudsman.

Sphere of validity.

v. Control Machinery

Individual and State complaints.

State reports.

Peaceful settlement of disputes.

vi. Final Provisions

In addition the contents of a special discussion document for a Special Convention was also prepared under the following headings:

11 Autonomy Rights of Ethnic Groups in Europe

Discussion Document for a Special Convention

Preamble

i. General Provisions

Autonomy without prejudice to the territorial integrity of the state.

Definition of ethnic group.
Fundamental principles.

ii. Rights of Autonomy

Right to territorial autonomy.
Scope of the territorial autonomy.
Rights to protection of other citizens.
Right to cultural autonomy.
Scope of cultural autonomy.
Right to local self-administration (local autonomy).
Scope of local self-administration (local autonomy).
Administrative sub-division.
Provision with financial means and financial adjustment.
Legality control.

iii. Provisions on Legal Protection

Internal implementation by the States and co-determination.

iv. Control machinery

Individual and State complaints.
State reports.
Peaceful settlement of disputes.

v. Final Provisions

I have mentioned the content of these documents to indicate the wide range of topics considered within the ambit of the need for minority protection.

4. The second example is taken from the report by the Secretary General of the United Nations in June 1992, which was given the over-all title: An Agenda for peace, Preventive diplomacy, peacemaking and peacekeeping.

I quote from the Report:

"The sovereignty, territorial integrity and independence of States within the established international system, and the principle of self-determination for peoples, both of great value and importance, must not be permitted to work against each other in the period ahead. Respect for democratic principles at all levels of social existence is crucial - in communities, within States and within the community of States. Our constant duty should be to maintain the integrity of each while finding a balanced design for all."

And in section 59 he refers in this regard to the need for the strengthening of "new democratic institutions."

Self-determination more and more today has an extended application in the search for social peace.

These examples confirm the Constitutional relevance of Article XXXIV of the Constitutional Principles.

In view of the aforesaid, I submit that the right to self-determination is of such importance that it needs to be included in the new Constitution as a right that can be claimed by all communities, without affecting National Unity or the democratic structures of Government.

I suggest that the panel of experts be consulted on where and how this can be done and what institutions can be created.

My own feeling is that it needs to be mentioned -

- i. in the Bill of Rights (Chapter 11, 17) under the heading of Freedom of Association;
- ii. in Chapter 10 under Local Government where provision must be made for institutions of self-determination for communities who so wish;
- iii. In Chapter 8 (Provinces), where sub-regional self-determination for larger consolidated communities by delegation of powers from the Provincial Governments, must be provided for through the creation of special institutions.,
- iv. Chapter 3 (Parliament), where institutions like the Council for Traditional Leaders and a possible Afrikaner Representative Council should be empowered in some appropriate way, perhaps as special Chambers of Parliament.

GEN. C.L. VILJOEN

21 February 1996

Self-determination - A reconnaissance of the concept: Universal need and practice

When we start negotiations on self-determination it is important that we all talk about the same thing and do so right from the start.

If that can be done we may save both time and anxiety. Avoiding misunderstanding in this way through conceptual clarity can facilitate a meeting of minds and produce a give and take process without anyone feeling a loser.

For in the international world the concept has often been abused. Particularly powerful states used and invoked the concept to suit their own selfish ideals or hidden agendas. This caused serious confusion on the concept.

And I must admit that also in South Africa and particularly within Afrikaner conservative groups there has been a tendency to claim the principle of self-determination in such a way

that it reminded one of the more offensive underlying motives of a racist nature of the apartheid era, thereby confusing the issues in such a way that an internationally acceptable and perfectly valid principle that have been applied in a positive way in the crises of the past century to the advantage of mankind has become suspect and to some may smack of racism. I suggest we consider this concept in the context in which it was legitimately used in the world of the twentieth century.

For the specific concept of self-determination is a product of the world of the 20th Century. The principles underlying the concept is much older and can go back to the ancient Greek philosophers when the principle of government by consent of the governed was established.

But the concept as it has developed in our times reflects the specific tensions or sensitivities of the twentieth century, which was foremost the era of interaction between the East (and Africa) and the West in the context of nationalistic reactions against Western political domination and against the imposing cultural over-powerment of almost the entire world by the West.

This interaction with its inherent tensions took place in a world that was, because of improved communications and technology, rapidly shrinking and adapting to a common materialistic industrialized type of society.

In many ways this was not an easy process. It was painful and confusing and went with cultural, religious and political crises on a massive scale. Some historians like to talk about a cultural shock. "One has described it as a spiritual earthquake."

It produced conflicts and wars that involved almost the whole of mankind. For the first time in mankind's history world-organizations like the League of nations and the United Nations developed in an effort to find consensus on the most fundamental issue of co-existence and peace.

It was under these historical circumstances that the concept of self-determination developed and was adapted to the needs of this type of society.

Let us be brief and come to conclusions on how to understand self-determination:

I In Europe the practice was formalized first in the context of a peace treaty where the maintenance of peace after the first world war was sought through the principle of self-determination. The principle was introduced as a specific mode for coexistence that would ensure peace in the conflict stricken region.

II Even more important for the purpose of our discussion was the use of this principle in the era of decolonization where it in a similar fashion became the suggested mode of co-existence for the international order especially after the second world war.

The prime aim again was peace through the respectful recognition of the widely divergent cultural and national groups who because of the rapidly shrinking world of human existence, became interdependent in a way that has never existed before and had to find a way of peaceful co-existence in this one world that could enhance co-operation and development.

III The analysis of the East/West conflict is of crucial importance to understand the meaning of self-determination. Just after the turn of the century the Boxer-rebellions in China initiated the manifestations of a fundamental cultural clash between East and the West that soon took on a political reaction. In a few decades time it was this cultural renaissance of the East and subsequently of Africa against the ways of the West that culminated in the thrust for independence and became the underlying motive for the demand for self-determination.

In the councils of the international community then self-determination was accepted as an essential demonstration of respect for the cultural identities of different peoples and as the best way of finding the mutual understanding that would guarantee co-operation. In this process the attempts at international co-operation was shaped of which the U.N.O. is the best example.

The popular reaction was against domination, cultural domination and over-powerment. The concept was developed because of growing interdependence in one world that had to be shared and from the need to find at basis for co-operation that will build trust and mutual respect in order to cope with the growing demands of a united world. The conflict had to be resolved.

And the remedy to the conflict was co-operation and interaction for the sake of the future of all in the one world we happen to share. The basis of the remedy was the mutual respecting of the freedom of all peoples towards the exercise of whatever form of self-determination was viable. As I said this concept has been abused by many for their own reasons. But from the historical conflict of East-West relationships we can draw certain conclusions with respect to a concept of self-determination, that is valid, legitimate and wholesome.

1. Self-determination should not in the final analysis be about self-indulgence in exclusivistic withdrawal. Even if it was initially a reactionary movement of self-assertion in the context of over-powerment and foreign domination, its real aim was engagement in co-operation on the basis of self-respect and respect of the other.
2. Self-determination is therefore not an end in itself. It is a mode of coexistence. It is about co-operation and taking on of joint responsibility. It is supposed to be a way, perhaps the most viable way, of addressing the common problems of the new society in a uniting world. It is an antidote for stress in human society.
3. Self-determination is about peace and the search for a realistic strategy towards peace. To be true to its real form it must be conflict solving and promote mutual trust and cultural tolerance. It must put at rest people's fears and apprehensions and encourage interaction.

IV It is of great significance that the way in which during the 20th Century the conflicting relationships between East and West was addressed (partly) through self-determination, the logical or perhaps the unavoidable consequence of the process was the growing "North-South" problem - i.e. the problem of the rich and the poor, the developed and the underdeveloped, the haves and the have-nots.

In the dynamics of the world society it is as though history has signalled a warning that unless this problem of global development is concurrently addressed adequately the peace of self-determination will prove to be a fallacy and a false hope. Self-determination must be

accompanied with a strategy for overall development or it will in the end be overtaken by a dimension of misery and historic futility that would render the effort meaningless in any way.

Looking at it in a positive way it is exactly this effort at development that can bring about meaningful interaction that can promote mutual understanding and consequently peace. The challenge today is to find effective ways of co-existence within the pluralist society. And that is indeed what happens in Europe today in the dialogue on minority rights. The real issue is to find an alternative to individualist liberalism that will cater also for the collective value systems and expectations of ethnic and cultural groups in one society. So even in the issue around minority rights, self-determination is the search for peaceful coexistence.

Self-determination and the protection of minority rights played a very important role in pronouncements of the Secretary General of the United Nations in recent years. In June 1992 he issued a report based on a summit meeting of the Security Council of the same year. Significantly the over-all title of this report was: An agenda for peace. Preventative diplomacy, peacemaking and peace-keeping.

On the occasion of the 50th Anniversary of the United Nations he added a supplement to the agenda for peace. It was dated 3 January 1995.

For a number of years now there has developed an universal precondition for the application of the principle of self-determination especially when it was applied in circumstances outside of the problem of colonialism. The precondition also applied to post-colonial states. This precondition was that a claim to self-determination was valid as long as it did not affect the integrity of the existing state.

The Unity of the state, even of post-colonialist states, was a consideration that was supposed to be given preference over possible claims for self-determination. That is, for instance, why the secession of Katanga was unacceptable to the international community.

The fear generally, that was underlying this precondition, was the possibility that self-determination if applied injudiciously, would lead to disintegration of existing states which would not be in the interests of all involved in the existing state.

A consequence of the rigid application of this precondition however was that regional and internal conflicts and simmering discontent have in recent years developed in many parts of the world to the extent that it has caused universal concern. The search is on for a remedy to these conflicts that in many cases have developed in wars and even in genocide. In Africa we had our fair share of this.

The hard realities of conflict and war and the shocks of genocide have made it clear that sensible accommodation of minority claims is perhaps of equal importance - equal to the accepted rule of the inviolability of the state. Or to put it differently: In the interest of the integrity of the state, legitimate claims of self-determination cannot be ignored. For the unity or the strength of the state lies in the content of its citizens. Willing partners are needed to build one nation in the context of the one state. This has recently become an acute problem within the U.N.O.

The Secretary General therefore suggests a new approach. I quote from his report: "The sovereignty, territorial integrity and independence of States within the established international system, and the principle of self-determination for peoples, both of great value and importance, must not be permitted to work against each other in the period ahead. Respect for democratic principles at all levels of social existence is crucial: in communities, within States and within the community of States. Our constant duty should be to maintain the integrity of each while finding a balanced design for all." And in section 59 he refers in this regard to the need for the strengthening of "new democratic institutions."

Self-determination more and more today has an extended application in the search for social peace. It is not a threat to democracy the way some seems to think about it. It is an extension and strengthening of democracy. For it ensures social peace and stability. And therefore it facilitates development.

That is why we ask for what we have a right to in terms of international practice today: Community self-determination in terms of Article XXXIV of the constitutional principles. This, gentlemen, is the first and foremost guiding principle of the Freedom Front in the new political dispensation. So let it be known to all what we mean by self-determination:

We in the Freedom Front have negotiated this principle on self-determination because we are part and want to be part of the future South Africa. We don't suffer from the syndrome of withdrawal. At the same time we want to retain our own in the way Africa and Asia wanted to retain what is their own over against the over-imposing and dominating West. We, like the nations of Africa and Asia, claim some right to self-determination, i.e. to determine our own destiny because we fear cultural over-powerment and eventual extinction.

We have a mandate from Afrikaners who have developed their own perception of nationhood. With some this meets respect, with other ridicule. But it is there. We had, like the peoples of Africa and Asia our own struggle for independence. In this struggle we led the violent resistance against Imperialism, against foreign domination in culture and politics. In this struggle we have built our own identity which, right or wrong, is precious to us.

We want to affirm that, whatever cultural political and attitudinal differences may at present cause strain and conflict in the broader South African society, we respect and honour the peoples we share this land with.

We have no desire to withdraw in some laager, We accept the challenge of co-existence and the need for democratization, full democratization which includes self-determination for communities who prefer it.

We state firmly our belief that the application of the principle of self-determination at this moment in time will be a contribution to peace and a step towards the building of a sovereign and stable state in South Africa. It will be in the interest of not only Afrikaners, but of all. This will be our thrust in constitutional negotiation.

We have to find agreement on how to reconcile both the ideal of the development of a non-racial democracy and self-determination for our people. The effort will be to find constitutional institutions that will enable us to find maximum community autonomy, that in the end will be contributing to what you call nation-building.

GEN. C.L. VILJOEN

ACCORD ON AFRIKANER SELF-DETERMINATION BETWEEN THE FREEDOM
FRONT, THE AFRICAN NATIONAL CONGRESS AND THE SOUTH AFRICAN
GOVERNMENT/NATIONAL PARTY

21 APRIL 1994

TAKING NOTE

of the Constitution of the Republic of South Africa, Act 200 of 1993 as amended;

and

TAKING NOTE

of the unsigned Memorandum of Agreement between the African National Congress (ANC)
and the Afrikaner-Volksfront (AVF), dated December 21, 1993;

and

TAKING NOTE

of Constitutional Principle XXXIV, dealing with the issue of self-determination;

and

SUBSEQUENT

to the discussions between the delegations of the ANC, the AVF, the South African
Government and eventually the Freedom Front (FF) -

The parties represented by these delegations record the following agreement:

I The parties agree to address, through a process of negotiations, the ideal of Afrikaner
self-determination, including the concept of a Volkstaat.

2. The parties further agree that in the consideration of these matters, they shall not
exclude the possibility of local and/or regional and other forms of expressions of such self-
determination.

3. They agree that their negotiations shall be guided by the need to be consistent with and
shall be governed by the requirement to pay due consideration to Constitutional Principle
XXXIV, other provisions of the Constitution of the Republic of South Africa, Act 200 of

1993 as amended, and that the parties take note of the Memorandum of Agreement, as referred to above.

[The Appendix to this Accord contains copies of these documents perused by the delegations.]

3.1 Such consideration shall therefore include matters such as:

3.1.1 substantial proven support for ideal of self-determination in a Volkstaat;

3.1.2 the principles of democracy, non-racialism and fundamental rights; and

3.1.3 the promotion of peace and national reconciliation.

4. The parties further agree that in pursuit of 3.1.1 above, the support for the ideal self-determination in a Volkstaat will be indicated by the electoral support which parties with a specific mandate to pursue the realisation of a Volkstaat, will gain in the forthcoming election.

4.1 The parties also agree that, to facilitate the consideration of the idea of a Volkstaat after the elections, such electoral support should be measured not only nationally, but also by counting the provincial votes at the level of:

4.1.1 the electoral district; and

4.1.2 the polling station as indicated to the Independent Electoral Commission by the Freedom Front, and where practical.

5. The parties agree that the task of the Volkstaatraad shall be to investigate and report to the Constitutional Assembly and the Commission on the Provincial Government on measures which can give effect to the ideal of Afrikaner selfdetermination, including the concept of the Volkstaat.

6. The parties further agree that the Volkstaatraad shall form such advisory bodies as it may determine.

7. The parties undertake to discuss among themselves and reach agreement on matters relating to matters affecting stability in the agricultural sector and the impact of the process of transition on this sector.

8. The parties agree that they will address all matters of concern to them, including matters of stability and the possibility of indemnity, through negotiations and that this shall not exclude the possibility of international mediation to help resolve such matters as may be in dispute and/or difficult to conclude.

8.1 The parties also agree that paragraph 8.0 shall not be read to mean that any of the deliberations of the Constitutional Assembly are subject to international mediation, unless the Constitutional Assembly duly amends the Constitution to enable this to happen.

8.2 The parties also affirm that, where this Accord refers to the South African Government, it means only the South African Government which will rule South Africa until the April 1994-elections.

9. The parties commit themselves to the consideration of the ideal of self-determination and the concept of a Volkstaat, before and after the April 1994-elections, with a view to facilitating the work of the relevant constitutional structures, which will deal with this matter after the said elections.

SIGNED BY:

GENL CONSTAND VILJOEN
LEADER: FREEDOM FRONT

MR THABO MBEKI
NATIONAL CHAIRMAN:
AFRICAN NATIONAL CONGRESS

MR ROELF MEYER
MINISTER OF CONSTITUTIONAL DEVELOPMENT
AND OF COMMUNICATION

WITNESSED BY:

PROF ABRAHAM VILJOEN

MR JURGEN KÖGL

April 22, 1994

APPENDIX

Chapter 1 **Constitutional Principle XXXIV**

I This Schedule and the recognition therein of the right of the South African people as a whole to self-determination, shall not be construed as precluding, within the framework of the said right, constitutional provision for a notion of the right to self-determination by any community sharing a common cultural and language heritage, whether in a territorial entity within the Republic or in any other recognised way.

2. The Constitution may give expression to any particular form of self-determination provided there is substantial proven support within the community concerned for such a form of self-determination.

3. If a territorial entity referred to in paragraph 1 is established in terms of this Constitution before the new constitutional text is adopted, the new Constitution shall entrench the continuation of such territorial entity, including its structures, powers and functions.

Chapter 2

Chapter 11 A: Volkstaat Council

Provision for establishment of a Volkstaat Council

184A.

(1) The establishment of a Volkstaat Council is hereby authorised.

(2) The Council shall consist of 20 members elected by members of Parliament who support the establishment of a Volkstaat for those who want it.

(3) The Council shall conduct its affairs according to rules made by the Council.

Functions of Council

184(b) (1) The Council shall serve as a constitutional mechanism to enable proponents of the idea of a Volkstaat to constitutionally pursue the establishment of such a Volkstaat, and shall for this purpose be competent -

(a) to gather, process and make available information with regard to possible boundaries, powers and functions and legislative, executive and other structures of such a Volkstaat, its suggested constitutional relationship with government at national and provincial level, and any other matter directly relevant to the establishment of such a Volkstaat;

(b) to make feasibility and other relevant studies with regard to the matters referred to in paragraph (a);

(c) to submit representations and recommendations to the Constitutional Assembly and the Commission on Provincial Government with regard to the possible establishment of a Volkstaat and any matter in connection therewith; and

(d) to perform such other functions as may be prescribed by an Act of Parliament.

(2) The procedures to be followed by the Council in the performance of its functions under subsection (1), shall be prescribed by an Act of Parliament.

(3) The procedures provided for in this Constitution with regard to the finalisation of provincial boundaries, shall not be construed as precluding the establishment of such a Volkstaat, and

in the event of the acceptance of the concept of a Volkstaat, alternative provision shall be made by an Act of Parliament for the finalisation of the boundaries of any affected province or provinces.

Chapter 3

(UNSIGNED - 21 DECEMBER 1993)

Memorandum of Agreement between the African National Congress and the Afrikaner-Volksfront

The delegations of the African National Congress and the Afrikaner-Volksfront have met on numerous occasions to discuss matters arising from the political transition in South Africa.

1. These discussions have resulted in the following agreements of understanding:

1.1 Both parties are committed to the development of a non-racial democracy. They both accept that many Afrikaners also have a commitment to the ideal of self-determination in a Volkstaat and that this ideal should be addressed expeditiously, without delaying the current process of transition.

Both parties reject any political suggestions which would embody racism and failed apartheid policies.

Proceeding from its perception of the balance of political forces, the AVF has been unambiguous in its rejection of communism as an acceptable political system.

1.2 Both parties believe that the objectives stated above are attainable, and that a suitable political solution can be found through a process of negotiations. The formulation of this solution demands commitment founded on a new vision for the future South Africa, supported by its leadership. Both parties seek constructive engagement in the constitutional process. This is a crucial commitment which will help in addressing the entrenched mistrust and antagonism which exists between the supporters of the Afrikaner-Volksfront and the African National Congress.

1.3 Both parties recognise the danger of serious conflict between members of their respective constituencies, and the destructive impact such conflict would have on the future development and property of South Africa. Furthermore, both parties have expressed their concern about the unstable social and political environment in the country, the unacceptable levels of political violence in particular regions, and the levels of crime and general crisis in the maintenance of law and order. All these matters, including the continuing spate of murders of farmers in rural areas, must be addressed collectively as a matter of urgency.

1.4 Though the two parties do not share a common position on the proposed schedule for the transitional process they have agreed that a strategic agreement, addressing matters of mutual concern, ought to be entered into. This will facilitate the implementation of the transitional process and the conduct of the elections on 27 April 1994.

2. Therefore, given the above mentioned concerns and considerations, the following agreements are now registered:

2.1 South Africa should be the home to all its inhabitants who share a common future, based on peaceful coexistence, economic interdependence and constitutional governance.

2.2 The two parties are determined to find an acceptable and sustainable accommodation for all in South Africa, bearing in mind the aspirations of the two parties, their constituencies, and other political formations in the country.

2.3 Recognising the role both parties can play in restoring peace and stability, they have agreed on the need to establish an inclusive security system as determined by the working group. The purpose of this will be to address all matters of security and stability. They further agree that similar structures could be established for agriculture and other relevant groupings.

2.4 They agree that the aspiration of many Afrikaners to govern themselves in their own territory should be addressed. Accordingly they agreed that a joint working group be established for this purpose, bearing in mind the call made by Dr Mandela, Dr Hartzenberg and General Viljoen for a solution which entrenches reconciliation, prevents conflict, and facilitates cooperation among all people. This working group should complete its task and report back to its principals by 20 January 1994.

The working group should examine, among others, the following issues:

- financial and economic viability of such a region and its monetary and fiscal relationship to the rest of the country;
- civil rights of Afrikaners outside the Volkstaat;
- civil rights of non-Afrikaners inside the Volkstaat;
- the nature of the relationship between the Volkstaat and other local, regional and central government/ administrative structures;
- the timetable and process of establishing such a Volkstaat in the light of the existing transitional process; and
- the method of determining support on a geographical basis for the idea of a Volkstaat.

Matters of mutual concern should be discussed and addressed in detail for the purpose of formulating recommendations and solutions.

2.5 The parties agreed, as part of this process, to send a joint delegation to Switzerland and Belgium to study how the political systems of these two countries work, and to determine whether aspects of these systems may be helpful in the resolution of the South African conflict.

2.6 The AVF, having accepted the ANC's good faith, has undertaken to actively discourage any action calculated to destabilise the transitional process. The culmination of this strategic agreement into a final settlement before end January 1994 will enable the AVF and its affiliates to consider participation in the transitional structures and process, as well as in the elections as scheduled to be held on 27 April 1994.

2.7 The ANC, having accepted the bona fides of the AVF, gives its commitment to promote agreements entered into with the AVF, including such constitutional and legislative agreements which may be required for their implementation.

2.8 Should any party to this agreement at any stage consider the whole or the specifics of the agreement to have been violated, an attempt at mutual conciliation will be made through the facilitators of the process before any unilateral action is taken.

2.9 It was decided that a meeting at leadership level will be convened as soon as possible with the view to:

- ratification of this agreement;
- deciding on the time frame for the above proposed actions, and on a way of achieving legitimacy;
- mandating and monitoring the task of the proposed working committee;
- public release of the strategic agreement; and deciding on ways of marketing these agreements, and publicly confirming all undertakings.

Chapter 4

Guidelines for the deliberations of the Volkstaat Council

The following guidelines for the deliberations of the Volkstaat Council were discussed by the delegations:

Self-determination:

The investigation of the different modes of self-determination and the concept of a Volkstaat. This investigation will be reported to the Constitutional Assembly and the Commission on Provincial Government, including manners in which effect can be given to the different modes of self-determination.

The accommodation of demands for self-determination on a provincial basis, through sub-regional structures within a province as now sanctioned by the amendments to section 160(3) of the constitution, should also be explored.

Proposals for self-determination of local communities through community councils or structures modelled along the lines of similar structures and processes in other parts of the world could be considered.

Citizenship:

Any form of derived citizenship intended for persons residing in a possible Volkstaat will not be racially based and shall be compatible with internationally accepted norms.

Advisory Bodies:

A national advisory body attached to the Volkstaat Council and constituted by twenty five representatives elected by local communities in the different provinces, supporting the ideal of self-determination in a Volkstaat, could be established. In the event of the realisation of a

concept of the Volkstaat, this body will represent the respective communities within the Volksraad of such a Volkstaat.

Chapter 5

Unmandated defining statement on the principle of self-determination

With reference to the central concept of self-determination used in the

Memorandum of Agreements
Constitutional Principle XXXIV
and the Accord

the delegations at this stage suffice with the following defining statement, although unmandated:

1 The concept shall in no way be construed as to give support to those fatal racist ideologies of the twentieth century that was based on chauvinistic excessive escalation of identities or even ethnocentrism which bred discrimination, racism and prejudices which on their part brought war, misery and death to many.

Legitimate self-determination instead should be consonant with and indeed flows from the concept of fundamental rights and the constitutional state.

2. The concept of self-determination we therefore could endorse is the universally accepted one that has been expressed in the Charter of the United Nations which serves the purpose of peaceful co-operation between peoples on the basis of mutual respect and recognition of fundamental freedom and basic human rights for all.

3. The legitimate concept of self-determination to us relates to the expressed desire of a substantial community or a people, who has attained through the prolonged experience of a common history, language, culture and often also of land, a sense of cohesion and belonging that universally constitutes the sense of nationhood.

The concept therefore relates to the need expressed by such a community or people to determine its own destiny and to exercise the right to decide policy and practise with regard to political, constitutional, economic, social, religious and educational matters in a way that is consistent with the peculiar expectations and value systems of such a people.

4. We have assumed that the desire for the exercise of selfdetermination with such a people must be a popular demand beyond reasonable doubt, a fact which may require substantial proven support through an agreed democratic process.

5. Self-determination within a complex pluralistic society based on inclusive democracy has to be negotiated and implemented with due regard to the rights of other citizens sharing the same territory on a permanent basis. Wider democratic processes must also be recognised.

A balance should be negotiated between the desire of such a people for self-determination and the ideal of peaceful well-being of the larger whole of society.

Self-determination will serve the purpose of building the state and not cause the dislocation of the state. It should facilitate peace and not cause conflict.

6. At the same time self-determination for a people constituting a minority should be considered with due regard to and in full recognition of the legitimate expressed expectations of such a people so as to avoid a type of majority domination that may in itself cause conflict or even the disintegration of the state.

7. In our considerations we have recognised various modes of self-determination. It may involve the negotiation of a territorial entity which may have various degrees of autonomy. This may be augmented by constitutional devices securing various degrees of autonomy over the specific affairs of that community at one or more of the levels of government. We have agreed that the principle of selfdetermination could be negotiated and applied to suit the demands of each unique situation.

8. The introduction of any form of self-determination through negotiations will need to be accompanied by extensive public information and a raised level of trust.